

By-paths of Bible Knowledge

XVIII

SOCIAL LIFE
AMONG THE
ASSYRIANS AND BABYLONIANS

A. H. SAYCE, LL.D.

By-paths of Bible Knowledge

XVIII

SOCIAL LIFE
AMONG THE
ASSYRIANS AND BABYLONIANS

A.H. SAYCE, LL.D.

The Project Gutenberg eBook of Social life among the Assyrians and Babylonians

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Social life among the Assyrians and Babylonians

Author: A. H. Sayce

Release date: November 11, 2025 [eBook #77217]

Language: English

Original publication: Oxford: The Religious Tract Society, 1893

Other information and formats: www.gutenberg.org/ebooks/77217

Credits: The Online Distributed Proofreading Team at <https://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive)

*** START OF THE PROJECT GUTENBERG EBOOK SOCIAL LIFE
AMONG THE ASSYRIANS AND BABYLONIANS ***

SOCIAL LIFE AMONG THE ASSYRIANS AND BABYLONIANS

Oxford

HORACE HART, PRINTER TO THE UNIVERSITY

By-Paths of Bible Knowledge

XVIII

SOCIAL LIFE AMONG THE ASSYRIANS AND BABYLONIANS

BY

A. H. SAYCE, LL.D.

DEPUTY PROFESSOR OF PHILOLOGY, OXFORD

AUTHOR OF 'FRESH LIGHT FROM THE ANCIENT MONUMENTS'

'ASSYRIA, ITS PRINCES, PRIESTS, AND PEOPLE,' ETC. ETC.

THE RELIGIOUS TRACT SOCIETY

56 PATERNOSTER ROW AND 65 ST. PAUL'S CHURCHYARD

PREFACE

The chapters composing this little volume originally appeared in the *Sunday at Home*. It was my intention on their republication to add translations of the chief original documents referred to. But on further consideration, bearing in mind the general scope of the 'By-Path' Series, I have decided that it is better to print them exactly as they were written.

CONTENTS

	PAGE
CHAPTER I.	
THE PEOPLE	9
CHAPTER II.	
HOW THE PEOPLE LIVED	18
CHAPTER III.	
EDUCATION	30
CHAPTER IV.	
MARRIAGE AND DEATH	45
CHAPTER V.	
THE MARKET, THE MONEY-LENDER, AND THE TENANT	58
CHAPTER VI.	
SLAVERY AND THE AGRICULTURAL LABOURER	74
CHAPTER VII.	
TRADES AND PROFESSIONS	89
CHAPTER VIII.	
THE RELIGION OF THE PEOPLE	106

CHAPTER I

THE PEOPLE

Ezekiel tells us how in the latter days of the Jewish kingdom the palace walls of Babylonia were adorned with ‘images of the Chaldeans portrayed with vermillion, girded with girdles upon their loins, exceeding in dyed attire upon their heads, all of them princes to look to, after the manner of the Babylonians of Chaldea, the land of their nativity^[1].’ He had already described the Assyrians as ‘clothed in blue,’ ‘clothed most gorgeously, horsemen riding upon horses.’ They thus differed from the Chaldeans, while the Chaldeans again are distinguished from the Babylonians, who, however, inhabited the same country as themselves and were clothed with the same apparel.

The discoveries that have been made of recent years in the valleys of the Tigris and Euphrates explain and illustrate the prophet’s words. Chaldea or Babylonia—for the two names are used synonymously—was the alluvial plain shut in between the two great rivers of Western Asia, and extended southwards from a point where they almost touched one another to the marshes at the head of the Persian Gulf, where they flowed into the sea. Northwards came the land of Assyria. It was originally the district which surrounded the ancient capital of Asshur, alluded to in the second chapter of Genesis^[2], built on the western bank of the Tigris. Still further to the north were the later capitals, Calah and Nineveh, between which stood Resen or Res-eni, ‘the head of the fountain^[3].’ The country of Assyria differed essentially from the country of Babylonia, and this difference exercised an influence upon the character of the populations which dwelt in them. Assyria was a land of limestone hills and thick forests, and was watered by the Tigris and its affluents, which cut their way through channels of rock. Babylonia, on the other hand, was flat and marshy; its soil was rich and fertile, but the rivers and streams that intersected it could be prevented from flooding the country only by means of a carefully organized system of canals. The silt which was carried down to the sea was continually adding to the land, and causing the shores of the Persian Gulf to advance

southwards; cities which stood on the sea-coast in the early days of Babylonian history are now left far inland.

The district adjoining the sea, however, was distinguished from the rest of Babylonia by the great salt-marshes which covered it. It was accordingly known as the land of Marratu, or 'the salt-marshes,' a name which appears in the Old Testament under the form of Merathaim^[4]. In its midst rose the ancestral city of Merodach-baladan, whose ambassadors were shown by Hezekiah all the treasures of the Jewish monarchy.

Merodach-baladan was a Chaldean. The Chaldeans, or Kaldâ, as they are called on the monuments, were a tribe which inhabited the salt-marshes, and we first hear of them in the ninth century before our era. Whether they belonged to the same Semitic race as the inhabitants of Babylon we do not know. But under Merodach-baladan they became famous in the Eastern world. Merodach-baladan made himself King of all Babylonia, and the Chaldeans became so integral and important an element in the population as henceforth to give it their name. From this time forward 'Babylonian' and 'Chaldean' became interchangeable terms.

The Babylonian race was by no means pure. The original inhabitants of the country had been the Accadians, or Sumerians, who spoke an agglutinative language like that of the modern Finns or Turks, and had been the authors of the cuneiform system of writing and of the culture of early Babylonia. They occupied both Accad, the northern division of Babylonia, and Sumer, or Shinar, its southern division. In Accad, however, they were subjected at an early epoch to the domination of Semitic tribes, whose first home had been in Arabia; in Sumer they held their ground for a longer period, and it is probable that the Semite did not succeed in superseding them in this part of the country until a comparatively recent time. The Semites of Babylonia were closely allied both in race and language to the Hebrews. It was from Ur of the Chaldees, now represented by the mounds of Mugheir, that Abraham had migrated, and the other cities of Babylonia must have been largely occupied by traders and settlers of the Semitic race.

Shortly after the age of Abraham the population of Babylonia became still further mixed, in consequence of the successful invasion of the country by certain tribes of Elam. The Kassî, as they are termed on the monuments, settled in numbers in the Babylonian plain, and established a dynasty of

kings who ruled for several centuries. Accadian, Semite, and Kassite intermarried and mingled together, forming a hybrid population, which subsequently admitted into its midst the Chaldean tribes of the south. The people of Babylonia thus became what the English are to-day; one of the most mixed of populations, tracing their descent from races of various origin.

Of far purer blood were the Assyrians in the north. Out of the land of Sumer, or Shinar, we are told, Asshur went forth to found the Assyrian kingdom^[5]. It was a colony sent out by the Semitic part of the Babylonian population, and up to the last the Assyrians continued to represent both in appearance and character the pure Semitic type. The faces depicted on some of their monuments remind us of the Jewish faces we may meet with to-day in the more squalid streets of the great European cities.

Nature and descent accordingly combined to produce a difference between the inhabitants of Babylonia and of Assyria. The Babylonian was a stout, thick-set man, somewhat short, with straight nose, wide nostrils, and square face. The Assyrian, on the other hand, was tall and muscular, his nose was slightly hooked, his lips were full, his eyes dark and piercing. His head and face showed an abundance of black curly hair. Such a type was in striking contrast to that of the early Accadian figures which have come down to us. Here the face is long and thin, with a straight beard, not altogether unlike that represented on the faces of old men in Chinese art. What the peculiar characteristics of the Chaldean face may have been we have at present no means of deciding.

The Babylonian was essentially an irrigator and cultivator of the ground. The cuneiform texts are full of references to the gardens of Babylonia, and the canals by which they were watered. It was a land which brought forth abundantly all that was entrusted to its bosom. The palm was indigenous in it; so too, according to naturalists, was the wheat. Even in classical days the yield of Babylonian wheat was enormous. Herodotus tells us that it was sometimes as much as three hundredfold to the sower. But the fear of floods and the reclamation of the marsh lands demanded constant care and labour, the result being that the country population of Babylonia was, like the country population of Egypt, an industrious peasantry, wholly devoted to agricultural work, and disinclined for war and military operations. In the towns, where the Semitic element was stronger, a considerable amount of

trade and commerce was carried on, and the cities on the sea-coast built ships and sent their merchantmen to distant lands. The Chaldeans, whose cry was in their ships^[6], despatched their trading fleets to the southern coasts of Arabia and the quarries of the Sinaitic peninsula, and even, it would appear, to the shores of India.

The character of the Assyrian was altogether different from that of the Babylonian. He was a warrior, a trader, and an administrator. The peaceful pursuits of the agricultural population of Babylonia suited him but little. His two passions were fighting and trading. But his wars, at all events in the later days of the Assyrian Empire, were conducted with a commercial object, and were not the meaningless displays of brute fury and the love of bloodshed which they have usually been imagined to be. It was to destroy the trade of the Phœnician cities and to divert it into Assyrian hands, that the Assyrian kings marched their armies to the west; it was to secure the chief highways of commerce that campaigns were made into the heart of Arabia and Assyrian satraps were appointed in the cities of Syria. The Assyrian was indeed irresistible as a soldier; but the motive that inspired him was as much the interest of the trader as the desire of conquest.

Unlike the Babylonian, he cared but little for education and literature. A knowledge of books was in Assyria confined to a few, more particularly the special class of scribes. A love of study is more likely to be developed among an agricultural than among a military people. Both Assyrians and Babylonians, however, were similar in one respect—they were both intensely religious. But here again we may note a difference between them. The religion of the Babylonians was far more mingled with superstition than was the religion of the Assyrians. While the Babylonian lived in hourly fear of the multitudinous demons which he believed to be ever on the watch to injure him, the Assyrian felt secure in the protection of his gods, above all, of the supreme god Asshur. When the Assyrian kings went forth to war it was with a firm confidence that they were fighting the battles of Asshur, and that Asshur would give them success. It is ‘through trust in Asshur,’ they are perpetually telling us, that they overcome all opposition, and compel the disobedient to acknowledge the power of the great Assyrian deity.

The Assyrians seem to have lived mostly in towns. The country was cultivated by slaves, or by the older population whom the Semitic colonists

found there. At all events it was from the population of the towns that the army was recruited and the ranks of the official bureaucracy were supplied. Consequently when the power of the army and of the upper classes was broken no force was left capable of resisting the foe. The continual wars of the Assyrian monarch drained the kingdom of its military class, while the Assyrian colonies which were planted as garrisons in conquered provinces tended still further to diminish the dominant part of the population. When, therefore, evil days fell upon the monarchy, and the country was overrun by Scythian hordes from the north, the Assyrian army was no longer able to withstand them. The troops which had garrisoned the subject provinces of the empire were recalled home, but they did not prove sufficient to defend even Assyria itself. The Assyrian Empire fell because the population which had created and maintained it was exhausted. The Assyrian stock practically became extinct, the Assyrian cities became heaps of ruins, and new races occupied their sites. In this respect Assyria offered a conspicuous contrast to Babylonia. There the population continued unchanged in spite of revolution and foreign conquest. Dynasties and empires might rise and fall; but the people of the country still cultivated their fields or plied their trade and commerce as they had done centuries before. An agricultural population survives, while a military caste which governs by the sword is sure in the course of time to vanish away.

CHAPTER II

HOW THE PEOPLE LIVED

Babylonia was the land of bricks, Assyria of stone. It was in Babylonia that the great tower had been built of brick whose head, it was intended, should 'reach to heaven.' The bricks were merely dried in the sun; it was but rarely that they were baked in the kiln. When it was wished to give additional solidity to the walls of a building, lighted fuel was piled up against them, and their surfaces were thus vitrified into a solid mass. But usually the Babylonian builders were content with the ordinary sun-dried brick of the country. Naturally it crumbled away in the course of time, and the brick structure became a mound of shapeless mud. Nebuchadnezzar tells us how the great Temple of the Seven Planets of Heaven and Earth at Borsippa, near Babylon, whose ruins are now known under the name of the Birs-i-Nimrud, and which has often been identified with the Tower of Babel, had been destroyed before his time by rain and storm, and neglect to repair its drains. In fact, the plain of Babylonia was covered with artificial hills formed of the *débris* of ancient temples which had been allowed to fall into decay. One of the earliest names given to it on the monuments is that of 'the land of mounds.'

No stone was found in the country. If stone was used, as, for instance, by Nebuchadnezzar in his construction of the quays of Babylon, it had to be brought from the distant mountains of Elam. Even the smallest stones and pebbles were highly prized. Hence it was that in Babylonia the art of engraving seems to have taken its rise. We learn from Herodotus that every Babylonian carried about with him an engraved seal attached to his wrist by a cord, and the statement is fully confirmed by the native monuments. The seal was of cylindrical shape, pierced longitudinally by a hole through which the cord was passed. When it was needed to be used, it was rolled over the wet clay which served the Babylonians as a writing material, and it was regarded as the necessary guarantee of the owner's identity. No legal deed or contract was valid without the impression of the seals belonging to

the persons who took part in it; the engraved stone, in fact, was as indispensable to its owner as his name itself.

In Assyria, on the contrary, clay was comparatively scarce, and stone was plentiful. Hence, while the temples and palaces of Babylonia were built of brick, those of Assyria were, at all events in part, built of stone. The Assyrians, however, had originally migrated from Babylonia, and they carried with them the tradition of the art and architecture of their mother-country. Accordingly, while making use of stone they nevertheless did not altogether forego the use of brick. The walls of Nineveh, in spite of their height, were constructed of brick, and it was only the basement of the palaces which was made of stone. We need not be surprised at this slavish imitation of a style of building which was out of place in the country to which it was transferred. In another respect the Assyrians imitated the architecture of Babylonia even more slavishly and needlessly. This was in the construction of vast platforms of brick, upon which the temples of the gods and the palaces of the kings were erected. In Babylonia such platforms were necessary, in order to secure the edifices upon them from the danger of floods or the inconveniences of a marshy soil. But in Assyria similar precautions were not required. There the buildings could have been raised on a foundation of rock, without the intervention of an artificial platform.

The brick walls of the Babylonian houses were covered with stucco, which was then adorned with painting. Dadoes ran around them, whereon were depicted the figures of men and animals. In the Assyrian palaces the dado was formed of sculptured slabs of stone, and painted in imitation of the dados of painted stucco which were usual in Babylonia. The cornices and other portions of the walls were in the houses of the wealthy often ornamented with bronze and alabaster, and even gold. At times ivory was used for the same purpose, as in the ivory palaces of Samaria^[7]. The doors more especially were overlaid with bands of bronze, and were frequently double, the hinges revolving in sockets of bronze. The windows were protected from the weather by means of curtains of tapestry; and a flight of steps, open to the air, led to the upper storeys of the house. The steps opened upon a court around which the sitting-rooms and bed-chambers were built, the apartments assigned to the women being kept separate from those of the men.

All these luxuries, however, were confined to the rich and noble. The mass of the people lived, like their descendants to-day, in mud cabins, with conical roofs of clay. They had to be content to live on the ground floor, and to exclude the cold, and rains of winter, not with costly tapestries, but by making the apertures in the walls which served as windows as small as possible. It is needless to say that the bronze and sculpture and painting which adorned the habitations of the wealthy were unknown in those of the poor.

Even in the houses of the wealthy the furniture was doubtless as scanty and simple as it is still to-day in the East. Rugs of variegated patterns were laid upon the floor, and chairs and stools of various shapes and sizes were used. The stools were generally lofty, so that the feet of the sitter had to be supported on a footstool. Some of the chairs were provided with arms.

At times, instead of chairs, couches or divans were employed. The luxurious Assyrian would even recline on a couch when eating, a habit which passed from the East to Greece, and from Greece to Rome, so that in the days of our Saviour it was more customary to 'recline' than to sit at meat. One of the bas-reliefs in the British Museum represents the Assyrian king Assur-bani-pal lying on a couch while he drinks wine and feasts after the defeat and death of his Elamite enemy, though his wife, who participates in the banquet, is seated on a chair. The custom of reclining at meals was doubtless borrowed by the Assyrians from Babylonia, since the older native fashion was to seat the guests at a dinner party on lofty stools on either side of a small table. At night the wealthier classes slept on bedsteads covered with thick mattresses or rugs. Poorer people were satisfied with the mattress only, which was spread upon the ground, and rolled up when no longer needed for use. It was a bed which could be taken up and carried away, like the 'beds' we read of in the New Testament. All classes alike slept in their ordinary clothes.

The house of the well-to-do Assyrian or Babylonian was not considered complete unless it was provided with a garden or plantation, which, it would seem, was usually planted in front of it. It was well stocked with trees, among which the palm naturally held a chief place. In warm weather tables and seats were placed under the shade of the trees, and meals were thus taken in the open air. Those who could afford to keep slaves for the purpose employed one of them in waving a large fan, in order to drive

insects away while the meal was being enjoyed. In taking the lease of a house, the tenant usually agreed to keep the garden in order, and to replace any trees that might die or be cut down.

The garden was irrigated from one of the numerous canals which intersected the whole of Babylonia. The rich employed hired labourers for the purpose; the poor had to irrigate their own plot of ground. The water was drawn up in buckets and then poured into a number of rivulets which ran through the garden. Vegetables of all kinds were grown along the edges of the rivulets, more especially onions and garlic. It would appear that flowers also were cultivated, at all events in the gardens of the wealthy, since vases of flowers were placed on the tables at a banquet.

The costume of the people was as varied as it is in the modern European world. Old lists of clothing have come down to us which contain as large an assortment of different dresses and their materials as could be found in a shop of to-day. Among the materials may be mentioned the *sindhu*, or muslin of 'India,' which is described as being composed of 'vegetable wool,' or cotton, and so bears testimony to an ancient trade between Chaldea and the western coast of India. Most of the stuffs, however, were of home manufacture, and were exported into all parts of the civilized world. It will be remembered that among the Canaanitish spoil found in the tent of Achan was 'a goodly Babylonish garment^[8].'

In spite of the changes of fashion and the varieties of dress worn by different classes of persons, the principal constituents of the Assyrian and Babylonian costume remained the same. These were a hat or head-dress, a tunic or shirt, and a long outer robe which reached to the ankles. In early Babylonian times the hat was ornamented with ribbons which projected before and behind like horns; at a later period it assumed the shape of a tiara or peaked helmet. The material of which it was composed was thick and sometimes quilted; the upper classes further protected their heads from the sun by a parasol, which in Assyria became the symbol of royal or semi-royal authority. The tunic was of linen or wool, the latter material being much employed, particularly in cold weather; it reached half-way down the thigh, and was fastened round the waist by a girdle. A second tunic was often worn under the first, doubtless during the winter season.

The long robe or cloak was specially characteristic of the Babylonians. It opened in front, was usually sleeveless, and was ornamented at the edge with fringes. In walking it allowed the inner side of the left leg to be exposed. Not unfrequently the girdle was fastened round it instead of round the tunic. In Assyria the king sometimes wore over his robe a sort of chasuble, richly ornamented like the robe itself.

The Babylonian priest was characterized by a curious kind of flounced dress which descended to the feet, and perhaps was made of muslin. From immemorial times a goat-skin was also flung over his shoulders, the goat being accounted an animal of peculiar sanctity. On Babylonian cylinders and seals a priest may always be at once distinguished by the flounces of his dress.

The costume of the women differed externally but little from that of the men—at least when the latter were dressed in their outer robe. The queen of Assur-bani-pal is depicted in a long unsleeved robe, over which comes a fringed frock reaching below the knees, and over that again a light cape, also fringed and patterned with rosettes. On her feet are boots, and around her head is a crown or fillet representing a castellated wall, and thus resembling the mural crown of Greek sculpture. Earrings, bracelets, and a necklace complete her costume.

Earrings, bracelets, and necklaces were also worn by the men. Anklets are referred to in the inscriptions as well as finger-rings, though the usual substitute for a finger-ring was the cylinder, which, as has already been stated, was attached by a string or chain to the wrist.

The Babylonian, at any rate in earlier times, seems ordinarily to have gone bare-footed. Already in the twelfth century B.C., however, we find the king^[9] wearing a pair of soft leather shoes, and in Assyria sandals were in use from an early period, the sandal being furnished with a cap for protecting the heel. The northern conquests of Tiglath-pileser III and Sargon introduced the laced boot of the inhabitants of the colder regions in the north. The cavalry, who had hitherto ridden with bare legs, now adopted high boots, laced in front, and worn over tightly-fitting breeches of plaited leather. Certain of the foot-soldiers were also clothed in the same way; while others of them wore the boots without the trousers. Sennacherib was

the first of the Assyrian kings who discarded the sandal in his own person and substituted for it a shoe, which like the military boot was laced in front.

It must not be imagined that the robe or even the tunic was always worn. In fact, the light-armed troops in the Assyrian army were contented with a simple kilt, which, together with a felt skull-cap, constituted the whole of their dress. This was also the costume of the Babylonian labourer when working in the fields, and both Assyrians and Babylonians, while engaged in manual work or military operations, discarded the long and inconvenient outer robe. It was only the upper classes who could afford the luxury of wearing it in every-day life. So, too, the use of a hat or cap was not universal. Numbers of people were satisfied with tying up their hair with a fillet or string, even when exposed to the heat of the sun. At times even the fillet was dispensed with.

The hair of the head was worn long, and the Assyrians distinguished themselves from their neighbours by dressing and curling both it and their beards. The fashion must have been derived from the early Semitic population of Babylonia, since the hero of the great Chaldean epic is represented on ancient engraved seals with a curled beard. On the other hand, the practice was unknown to the non-Semitic population of the country; the sculptured heads, for instance, found at Tel-loth, which belong to the Accado-Sumerian epoch, are either beardless or else provided with long uncurled beards which terminate in a point, 'the musked and curled Assyrian bull,' spoken of by Lord Tennyson, being a Semitic creation. Here, as elsewhere, fashion was determined by physical characteristics, and it was only among a Semitic people distinguished by its thick growth of black hair that the art of the hair-dresser could develop as it did in Semitic Babylonia and Assyria. The comparatively beardless Sumerians rather encouraged the barber, who accordingly occupies a conspicuous place in early Babylonian literature.

CHAPTER III

EDUCATION

The Babylonians were the Chinese of the ancient world. They were essentially a reading and writing people. In spite of the intricacy of their system of writing, with its multitudinous characters, each of which had more than one phonetic value, and might be used to express an idea or word, books were numerous and students were many. The books were for the most part written upon clay with a wooden reed or metal stylus, for clay was cheap and plentiful, and easily impressed with the wedge-shaped lines of which the characters were composed. But besides clay, papyrus and possibly also parchment were employed as writing materials; at all events the papyrus is referred to in the texts, though all vestiges of it have long since disappeared in the damp climate of the valley of the Euphrates.

The use of clay for writing purposes extended, along with Babylonian culture, to the neighbouring populations of the East. In the century before the Exodus, recent discoveries have shown that clay libraries existed, and that an active correspondence was carried on by means of clay tablets in all parts of the ancient Oriental world. The Babylonian language and characters were taught and learned not only in Mesopotamia and Aram, but also in Cappadocia, Syria, Palestine, and even Egypt. Letters on clay in the cuneiform script were sent from Phœnicia and the cities of the Philistines, from Gaza and Ashkelon, from Lachish and Megiddo. If ever the site of Kirjath-Sepher or 'Booktown,' which was destroyed by Othniel^[10], be discovered and excavated, it is possible that we may find a store of records in clay among its ruins. The invasion of Syria by the Hittites and their subsequent wars with the Egyptians, together with the conquest of Canaan by the Israelites, put an end to the early intercourse between Babylonia and the West. The use of the Babylonian language was discontinued among the educated circles of Syria and Palestine; the cuneiform syllabary was supplanted by the simpler Phœnician alphabet; and papyrus or parchment, rather than clay, became the ordinary writing material. But in the later days of the Jewish monarchy the employment of clay seems to have again come

into favour. From the reign of Ahaz onwards, Assyrian influence was strong in Judah; Ahaz himself set up a sun-dial in Jerusalem^[11], in imitation of those which had existed from time immemorial in Babylonia; and Hezekiah caused old texts to be edited^[12], like the kings of Assyria and Chaldea, who kept scribes constantly employed in copying out the ancient literature with which their libraries were filled. It is not surprising, therefore, that the common writing material of Assyria and Chaldea was also introduced into Judah. We may gather from Jeremiah^[13] that, as in Assyria, so too in Judah, in the age of Jeremiah, legal documents were inscribed on tablets of clay, which were then sealed and covered with a clay envelope. On this was written a summary of the deed it contained; the whole document being subsequently consigned to the safe keeping of an earthen jar.

It is astonishing how much matter can be compressed into the compass of a single tablet. The cuneiform system of writing allowed the use of many abbreviations—thanks to its ‘ideographic’ nature—and the characters were frequently of a very minute size. Indeed, so minute is the writing on many of the Assyrian (as distinguished from the Babylonian) tablets that it is clear not only that the Assyrian scribes and readers must have been decidedly short-sighted, but also that they must have made use of magnifying glasses. We need not be surprised, therefore, to learn that Sir A. H. Layard discovered a crystal lens, which had been turned on a lathe, upon the site of the great library of Nineveh.

Where it was found impossible to compress a text within the limits of a single tablet, it was continued on a second, a very clever arrangement being adopted in order to facilitate reference. The tablets were called ‘the first’ or ‘second’ of a series, which received its name from the first word or line of the work inscribed upon them, and the last line of the first tablet was repeated at the beginning of the second. In this way the librarian and reader were able without loss of time to refer to any tablet which was required in a particular series or work. Of course the scribes who copied the tablets endeavoured to make each tablet correspond with what we should call a chapter, so that the several tablets of a series may be described as the successive chapters of a book.

To learn the cuneiform syllabary was a task of much time and labour. The student was accordingly provided with various means of assistance. The

characters of the syllabary were classified and named; they were further arranged according to a certain order, which partly depended on the number of wedges or lines of which each was composed. Moreover, what we may term dictionaries were compiled, in which every character not only had assigned to it the different phonetic values it possessed, but also the different ideographic significations with which it had been used, or was thought to have been used, in earlier literature. These ideographic significations resulted from the fact that the cuneiform system of writing had been pictorial and hieroglyphic before it had developed into a syllabary, each character representing an idea or word.

To learn the signs, however, with their multitudinous phonetic values and ideographic significations, was not the whole of the labour which the Babylonian boy had to accomplish. The cuneiform system of writing, along with the culture which had produced it, had been the invention of the non-Semitic Accado-Sumerian race, from whom it had been borrowed by the Semites. In Semitic hands the syllabary underwent further modifications and additions, but it bore upon it to the last the stamp of its alien origin. On this account alone, therefore, the Babylonian student who wished to acquire a knowledge of reading and writing was obliged to learn the extinct language of the older population of the country.

There was, however, another reason which even more imperatively obliged him to study the earlier tongue. A large proportion of the ancient literature, more especially that which related to religious subjects, was written in Accado-Sumerian. Even the law-cases of early times, which formed precedents for the law of a later age, were in the same language. In fact, Accado-Sumerian stood in much the same relation to the Semitic Babylonians that Latin has stood to the modern inhabitants of Europe. Even words and proper names had been borrowed from it, and just as the etymology and meaning of many of our words can be understood only by a reference to Latin, so the etymology and meaning of such words could be understood only by a reference to Accadian.

Besides learning the syllabary, therefore, the Babylonian boy had to learn the extinct language of Accad and Sumer. For this purpose he was provided with lists of words or vocabularies in which the Accadian word was explained in Semitic Assyrian, with grammatical paradigms giving the forms of the Accadian verbs and postpositions, with the explanations of

difficult phrases, with extracts from ancient books translated into Assyrian, notes being sometimes added upon obscure and important words, as well as with interlinear or parallel translations of long and complete texts. The student was also encouraged to write himself in this literary Latin of Chaldea, and numerous works exist which show by their age, their idioms, and sometimes even their errors, that they must have been the work of Semitic scribes. The Accadian of the subjects of Nebuchadnezzar could be as faulty as monkish or schoolboy's Latin.

But a knowledge of Accadian was not all that was demanded from the Assyrian or Babylonian gentleman, if he wished to make his way in the world. It will be remembered that the Rab-shakeh, or 'Vizier' of Sennacherib, addressed the Jews at Jerusalem in their own language, and that the ministers of Hezekiah asked him to use 'Aramaic' or 'Syrian' instead^[14]. They thus assumed that he could speak a language which, though unknown to the uneducated 'people on the wall,' was evidently considered to be included in the course of study of an educated gentleman. Aramaic, in fact, had come to occupy a similar position to that occupied by French in modern diplomacy and society. It was the international language of the statesmen of the day. But, unlike French, it had come to occupy this position from its being the language of trade. Aramaic traders were settled in the towns of Babylonia and carried on business in the midst of Nineveh. Commercial documents exist of the age of Tiglath-pileser III and his successors, in which an Aramaic docket is attached to the cuneiform text, and weights have been found in Assyria which have upon them both Aramaic and Assyrian inscriptions. The Assyrian and Babylonian merchant was consequently compelled to read, write, and speak Aramaic; and the Assyrian conquests, which had for their chief object to divert the trade of Aram and Phœnicia into Assyrian hands, had made it necessary for the politician to follow the example of the merchant. The Assyrian or Babylonian boy had his Latin and French to learn no less than the English boy of to-day.

The history of the Rab-shakeh of Sennacherib shows that a knowledge of these two languages might be supplemented by the knowledge of a third. In addition to Assyrian and Aramaic, he was also able to speak Hebrew, learned, perhaps, from one of the exiles from the northern kingdom who had been carried away from Samaria eighteen years before. Assyrian

contract-tablets of this age have been found, in which mention is made of persons with Israelitish names who resided at Nineveh. The dragoman, or interpreter, moreover, had long been a recognized institution in the East. As far back as the fifteenth century before our era, the King of Aram Naharaim speaks of the *targumannu*, or 'dragoman,' whom he sent to Egypt; and, seven centuries later, an Assyrian writer makes mention of a *targumannu* of the country of the Minni. When the ambassadors of Gyges of Lydia first arrived in Nineveh it is recorded, as an evidence of the distance from which they had come, that there was no one found there to understand what they spoke.

The study of foreign tongues naturally brought with it an inquisitiveness about the languages of other people, as well as a passion for etymology. The latter led the grammarians to invent Accadian etymologies for Semitic words, like the Greek or Latin etymologies invented for Teutonic words in English by the dictionary-makers of a former generation. Thus we find *Sabattu* or *Sabatuv*, 'the Sabbath,' derived from the two Accadian words *sa*, 'the heart,' and *bat*, 'to end,' and accordingly explained to mean 'a day of rest for the heart.' The inquisitiveness about foreign languages produced better results. We owe to it the preservation of the meaning of several words in the ancient languages of Elam, and of the other countries by which Babylonia was surrounded. We have, for instance, a list of words belonging to the language of the Kassites on the eastern side of Babylonia, together with their translation; and even a conqueror like Sargon goes out of his way to tell us that a particular architectural term was of Phœnician origin.

But there were other things besides languages which the young student in the schools of Babylonia and Assyria was called upon to learn. Geography, history, the names and nature of plants, birds, animals, and stones, as well as the elements of law and religion, were all objects of instruction. The British Museum possesses what may be called the historical exercise of some Babylonian lad in the age of Nebuchadnezzar or Cyrus, consisting of a list of the kings belonging to one of the early dynasties, which he had been required to learn by heart. The last ruler of the Babylonian Empire, Nabonidos, the father of Belshazzar, was himself an enthusiastic antiquarian, and the pioneer of archaeological excavation. He caused excavations to be made on the sites of the older temples of Babylonia, in order to discover the inscriptions and records of the kings to whom their

foundation was ascribed. His search for the buried monuments of the founder of the great Temple of the Sun-god at Sippara reads like the history of similar searches made in recent years in Westminster Abbey or Canterbury Cathedral. Natural history, as distinguished from the history of the monumental past, was, of course, in its infancy, and consisted of little else than a descriptive catalogue of natural objects. The work of King Solomon on trees, and 'beasts, and fowl, and creeping things, and fishes^[15],' must have been of a like character.

The libraries were established in the temples, and the schools in which the work of education was carried on were doubtless attached to them. Strabo, the Greek geographer, tells us that Borsippa, the suburb of Babylon, was famous for the schools or universities that had once existed there; and the medical college of Borsippa seems to be referred to in a Babylonian treatise on medicine, fragments of which are now in the British Museum. The library of Borsippa was stored in the great Temple of Bel; and as late as the time of Darius we find a Babylonian copying out a portion of the Epic of the Creation, and depositing it in the library, 'for the preservation of his life, and the life of all his house^[16].' To add fresh copies of books to the collection was thus considered a pious act.

The libraries were open to the public. Assur-bani-pal, for instance, is never weary of declaring that the library of Nineveh had been founded and enlarged 'for the use of readers,' and from a very early epoch the office of librarian was held in high honour. One of the earliest Babylonian librarians of whom we know calls himself the son of the king. It was, without doubt, a well-paid post, and the number of scribes employed in the library required in its holder the possession of administrative abilities.

A considerable proportion of the inhabitants of Babylonia could read and write. The contract tablets are written in a variety of running hands, some of which are as bad as the worst that passes through the modern post. Every legal document required the signatures of a number of witnesses, and most of these were able to write their own names. It was only when they could not do so that the law was satisfied with a simple 'nail-mark' in the clay, the name of the witness being appended to the nail-mark by the clerk. In Assyria, however, education was by no means so widely spread. Apart from the upper and professional classes, including the men of business, it was confined to a special body of men—the public scribes. Indeed, it is probable

that, before the reign of Tiglath-pileser III (B.C. 745-727), it was only the scribes, as a general rule, who had learned to read and write. In Assyria, accordingly, we find none of that variety of handwritings which often makes the decipherment of a Babylonian document so difficult. A neat official hand was in use there, which seldom displays any individual peculiarities, and remained practically unchanged for several centuries.

Women, as well as men, enjoyed the advantages of education. This is evident from the Babylonian contract-tablets, in which we find women appearing as well as men as plaintiffs or defendants in suits, as partners in commercial transactions, and as signing, when need arose, their names. There was none of that jealous exclusion of women in ancient Babylonia which characterizes the East of to-day, and it is probable that boys and girls pursued their studies at the same schools.

The education of a child must have begun early. The strain put upon the memory by the cumbersome cuneiform syllabary and the Accadian language that lay behind it were so great that the acquisition of them must have commenced at an early age. The fragment of an old Accadian folk-tale, which once formed part of a lesson-book for the nursery, shows, however, that it was probably not before the age of five or six. The story is that of a foundling who was picked up in the streets, and taken 'from the mouth of the dogs and ravens,' being subsequently adopted by the king as his own son. The child, we are told, was first brought before the *asip*, or 'prophet,' who marked the soles of his feet with his seal^[17]; he was then handed over to the nurse, to whom the boy's 'bread, food, shirt and (other) clothing were assured for three years.' 'So,' the story proceeds, 'his rearing went on for him for a time.' Had the rest of the tale been preserved, we should doubtless have heard something about his education, and light would thus have been thrown on the school life of a Babylonian lad.

We already know enough, however, to see that education was by no means backward in the old empires of Western Asia. As in Egypt, so too in Babylonia, if not in Assyria, a knowledge of reading and writing was widely spread, books were multiplied, and there were plenty of readers to study them. So far from being illiterate, the ancient civilized East was almost as full of literary activity as is the world of to-day. The so-called critical judgements that have been passed upon it, begotten of ignorance

and prejudice, must be revised in the light of the fuller knowledge which we now possess.

The Israelites in Canaan were surrounded by nations who were in the enjoyment of ancient cultures, and abundant stores of books. There is every reason for believing that the Israelites also shared in the culture of their neighbours, and the literary activity it implied. We now know that Egyptians and Babylonians wrote and read, not only in the time of David and Solomon, but ages before; why should not the Hebrews also have done the same? If the historical authority of the Old Testament Scriptures is to be overthrown, it must be by other arguments than the unwarranted assumption that letters were unknown in the epoch which they claim to record.

CHAPTER IV

MARRIAGE AND DEATH

It is doubtful how far polygamy was practised among the Assyrians and Babylonians. The rich and powerful, indeed, permitted themselves to indulge in the possession of more than one wife, though even in their case one of the wives ranked before the others, and her children alone, so far as we can gather, were considered legitimate. The bulk of the people, however, as in the modern East, could not have afforded the luxury of several wives. Most of the contract tablets which relate to matrimony imply that the household acknowledged two heads only, and that the husband was contented with a single wife. Moreover, the position held by the woman in the Babylonian community is inconsistent with an extensive system of polygamy. It was rather the nomad Arab tribes on the frontiers of Babylonia than the settled and civilized Babylonians themselves who considered the possession of several wives to be the privilege of the man.

But while polygamy, in the strict sense of the term, seems to have been rare, concubinage prevailed as widely as it did among the inhabitants of Palestine. But it was fenced about with stringent penalties which fell with especial force upon the woman. The Babylonian who made a *mésalliance* received no dowry with his spouse; should he wish to divorce her, however, he had to pay her a considerable fine in money, which served for her maintenance after she had left his house. Any unfaithfulness to him upon her part was punished with death. We hear, for instance, of a certain Nebo-akhi-iddin in the time of Nebuchadnezzar, who married a singing-woman, and in the marriage contract it is laid down that if he should divorce her and marry another he shall pay her as much as six manehs of silver, or about fifty-four pounds; on the other hand, if she commit adultery, she is to be put to death with 'an iron sword.'

In ordinary cases the husband received a dowry with his wife. This dowry served not only to provide the wedding trousseau, but also to make the wife independent of the husband in the matter of property. In this way she was protected from tyrannical conduct upon his part, as well as from the

fear of divorce on insufficient grounds. If a divorce took place, the husband was required to hand over to the wife all the property she had brought with her as dowry, and she then either returned to her father's house or set up an independent establishment of her own.

The dowry usually included furniture and slaves as well as money. The slaves were valued at a certain price, and might be given in place of a portion of the money which was originally stipulated to be handed over. In one case, for example, a female slave was accepted in place of two-thirds of a maneh of silver (six pounds) which the father of the bride had agreed to pay. Where the dowry was not immediately forthcoming, security for the payment of it was taken by the bridegroom.

The dowry was paid by the father of the bride, if he were alive. If he were dead, or if the mother of the bride had been divorced and was in the enjoyment of her own property, it was she by whom the dowry was given. In such a case permission to marry the daughter was asked by the suitor from the mother instead of from the father, and the mother accordingly was called upon to contribute the dowry.

If the husband died, and his widow married again, she carried her former dowry with her. In such a case, however, the children of the first marriage received two-thirds of the dowry after the mother's death, and the children of the second marriage only one-third. This was in accordance with the law that in the case of a second marriage the children inherited only one-third of the father's property, the other two-thirds going to the children by the first wife. Besides her dowry, the wife might hold other property, either bequeathed to her by her parents or given by her husband. On her death this was usually reckoned along with the dowry for purposes of division among the heirs. It was also reckoned along with the dowry as constituting her property during life. Thus, in the thirty-fourth year of Nebuchadnezzar, we find a father stipulating that the creditors of the father of his son-in-law should have no claim upon either the dowry or the other property of his daughter. Where the dowry had been promised merely, and not symbolically handed over to the bride, the bridegroom could claim only a proportionate amount of it, should his father-in-law have incurred pecuniary losses after the promise had been made. The heirs had to pay the dowry if the father-in-law died between his agreement to give it and the actual marriage, and when the wife died without children it returned to her 'father's house.'

The bridegroom was not usually required to offer anything, except his hand. In some instances, however, we find him buying his wife like a slave, with a present of money to her parents, and receiving no dowry in return. Thus a certain Dagil-ili, who married the daughter of a lady named Khammâ, gave the mother one and a half manehs of silver, and a slave worth half a maneh (or about eighteen pounds in all), and stipulated that if he married a second wife he would pay her daughter one maneh of silver and send her back to her mother's house. Here it would appear that Dagil-ili was marrying beneath him, the consequence being that his wife, as long as she lived with him, had no property of her own, and was somewhat in the position of a slave. It is therefore interesting to learn that even in this case marriage with a second wife brought with it as a matter of course the divorce of the first. Nothing could show more clearly how little hold polygamy had upon the Babylonian people.

Marriage, however, was permitted among near relatives by blood. We hear of a man marrying his niece, and, in the time of Cambyses, of a brother marrying his sister by the same father. Perhaps this was in imitation of a well-known Persian custom.

Marriage was partly a religious and partly a civil function. The contracting parties frequently invoked the gods, and signed the contract in the presence of the priest. At the same time it was a contract, and in order to be legally valid it had to be drawn up in legal form and attested by a number of witnesses. Like all other legal documents, it was carefully dated and registered.

The possession of property by the wife brought with it the enjoyment of considerable authority. The wife could act apart from her husband, could enter into partnership, could trade with her money, and conduct law-suits in her own name. Numerous deeds exist which record the sale and purchase of slaves by women, who appear in them as the legal equals of men. In other instances the husband and wife, or brother and sister, act together, the property sold or bought being regarded as their joint possession. In the eighth year of Nabonidos, for example, we hear of a brother and sister selling a Persian slave-girl 'and her son who is on the breast' for nineteen shekels of silver (£2 17s.), and four years later (B.C. 544) of a husband and wife borrowing in common a sum of money, on which they promise to pay interest at the usual rate of twenty per cent. Even more interesting is a

contract dated in the second year of Nabonidos (B.C. 555), in which a father transfers his property to his daughter, reserving to himself only the use of it during the rest of his life. In return, his daughter undertakes to take care of him and to provide him with the necessities of existence, food and drink, oil and clothing.

Equally interesting is the case of a mother in the fifth year of Cambyses, who 'brought a document' to the priest of the Sun-god at Sippara and 'gave' him, like Hannah, her three sons, that they might 'enter the house of the males.' She alleged that they had not yet entered it, as she had 'lived' and 'grown old' with them since they were 'little ones' until 'they had been counted among grown-up men.'

The 'house of the males,' into which the young men were introduced, seems to have been a sort of monastic establishment attached to the great temples of Babylonia. The community was under a head, or superintendent, who received each month a certain amount of food and other provision for the support of himself and his associates. They appear to have been celibates, to have lived together in a kind of college, into which women were forbidden to enter, and to have taken part in the daily services of the temple to which they were attached. The expenses of their maintenance were borne partly by endowments, partly by the tithes and other offerings made to the temple. The institution reminds us of the college in which Daniel and his companions were placed, where they were under a superintendent who provided them with the food furnished by the king^[18].

The naming of a child was an important event to the Babylonians and Assyrians. The name was believed to bring with it good or evil fortune, and to represent the owner of it not only symbolically, but even in a more material sense. To change the name, it was believed, had an important bearing on the course of events. When Sennacherib determined to nominate his favourite younger son for the succession to the throne, he changed his name from Esar-haddon to Assur-etil-mukin-abla—'Assur, the lord, is the establisher of (my) son.' The child was consequently named immediately after birth, perhaps in the presence of the *asip*, or 'prophet,' to whom reference is made in the nursery-tale which has been already quoted. As circumcision was also practised in Babylonia, it is possible that the two ceremonies of circumcision and name-giving were performed at the same time.

If the parents were childless, it was not unusual for them to adopt a son or daughter, to whom the property of the family could be handed on. The act of adoption consisted in allowing the hands to be taken by the person who was to be adopted, and thus symbolically receiving him into the family. The ceremony must have come down from prehistoric days, as it served to establish the king as the legitimate ruler of Babylon. Babylon was theoretically under a theocracy, under the divine government of Bel Merodach; and before a claimant to the throne could be recognized as its sovereign it was necessary that he should clasp the hands of the image of the god, and thereby become the adopted son of the true ruler of the city.

A very curious document has been preserved which indicates the close relation that existed between adoption and the devolution of property. A certain Babylonian, named Bel-katsir, had married a widow, and having no children of his own, wished to adopt his step-son. His father, however, intervened, and 'made a will' to the effect that the father's property should descend only to a genuine son of Bel-katsir; if no son of his own were born to him, it was to pass after his death to his brother, and in case of his brother's death to his sister; in no case was it to go to an adopted child. Bel-katsir was compelled to assent to these stipulations.

The document is interesting from several points of view, as it shows that a Babylonian had the same power as ourselves, not only of willing his property as he chose after death, but also of tying it up.

The dead were carried to the grave on biers, and were accompanied by mourners. The cemetery in which they were laid was outside the town, and formed a city in itself. The corpse was placed on the ground, wrapped in mats of reed, and covered with asphalt; it was clothed in the dress and ornaments that had been worn during life—the woman with her earrings in her ears, her spindle-whorl and thread in her hand; the man with his seal and weapons of bronze or stone; the child with his necklace of shells. Over all was laid a thick coating of clay, above which branches of palm, terebinth, and sandal-wood were frequently placed; the whole was then set on fire, and the corpse and all about it were reduced to ashes. This at least was the earlier custom; in later times ovens of brick were constructed, in which the corpse was placed in its coffin of clay and reeds, and the cremation was not allowed to be complete. The skeletons of the dead are consequently often found in a fair state of preservation. Offerings were

made at the same time that the body was burned: these consisted of dates, calves and sheep, birds and fish, which were consumed along with the corpse.

After the process of burning was over, the remains were either allowed to continue on the spot where the cremation had taken place, or were collected into urns and vases of clay. Of course it was only where the cremation had been complete that the latter mode of burial was possible, and even in such cases a portion only of the ashes was deposited in the urn. Where the cremation had been partial, an aperture was made in the shell of clay with which the body had been covered, the aperture was then closed, and a tomb of bricks built over the whole. A similar brick tomb was built over the urns containing the ashes of those whose bodies had been completely consumed.

It was believed that the spirits of the dead needed sustenance in their new home, and clay-vases were accordingly placed in the tombs, some of them filled with dates and grain, others with wine and oil; but a more bountiful provision was made in the case of water, which, it was thought, was wholesome to drink only when it was fresh and running. Little rivulets were made by the side of the tombs, through which a constant supply of water could be kept flowing for the spiritual needs of the dead. This represented 'the water of life,' of which we hear so often in the inscriptions. Pure water was indispensable in all religious ceremonies, and ancient legends recorded that there was a spring of 'life' bubbling up beneath the throne of the spirits of the under-world, of which whosoever drank would live for ever. It was of this spring that the water which ran in numberless rills through the cities of the dead was a symbol and outward sign.

The Necropolis was constantly growing in height. Successive generations of the dead were burned one above the other, the tombs of the older serving as a floor for the funeral pyres of the younger generation. The tombs thus rose one upon the other like the houses of crude brick in an Egyptian or Babylonian village. In this way terraces were formed which were surrounded with walls, and became the special burial-places of particular families or districts.

The rich were distinguished in death as well as in life; for them houses were erected, in the chambers of which their corpses were burned and buried. The house consisted of several chambers, and sometimes served as

the last resting-place of a single individual, sometimes of other members also of his family; rivulets of water were conducted into the house itself; here were laid, moreover, the various offerings of food and wine on which the soul of the dead man was supposed to live. At times tombstones were set up recounting the name and deeds of the deceased, at other times the tomb was adorned with seated statues of stone, which commemorated the features of the dead.

Only members of the royal family, it would appear, were permitted to be buried within the precincts of the town. Their bodies might be burned and entombed in one of the many palaces of the country. We are told of one king, for instance, that he was 'burned' or buried in the palace of Sargon, of another that he was 'burned' in his own palace. The practice throws light on what we read in the Books of Kings: there too we are told that Manasseh 'was buried in the garden of his own house,' and Amon in the 'garden of Uzza.' Private burial in the palaces they had inhabited when alive was a privilege reserved for the kings alone.

CHAPTER V

THE MARKET, THE MONEY-LENDER, AND THE TENANT

In the tenth chapter of Genesis^[19] mention is made by the side of Nineveh of ‘the city Rehoboth,’ which should rather be translated ‘the public square of the city.’ It represented, in fact, the great open square on the north-eastern side of Nineveh in which the market was held. Every city of Assyria and Babylonia was provided with a similar market-place; here were the magazines of the corn-merchants, the booths of the vendors of country produce, and the stalls in which cattle, horses, and camels were sold. It thus differed from the *suqu*, or ‘street’—the ‘bazaar’ of a modern Oriental city—which contained only the regular shops.

Most commodities had to pay a duty, corresponding to the continental *octroi*, before they were allowed to pass the gates of the city and be exposed to sale. It was accordingly to the interest of the purchaser to contract that country goods should be delivered to him within the walls of the city before they were paid for. Thus, in the eighteenth year of Darius, we hear of a lady named Akhabtu^[20] selling 200 sheep on her property in the country, and agreeing to send them into Babylon before receiving for them the stipulated price of fifteen manehs of silver (or £135). The purchaser was allowed ten days within which to pay the money; if he failed to do so, he was to be charged twenty per cent. interest upon the whole amount.

Prices naturally varied, according to the quality or scarcity of what was to be sold. In the twenty-fourth year of Nebuchadnezzar we find one full-grown ox, which was required for the service of the temple of the Sun-god at Sippara, costing thirteen shekels, or about £2. In the time of Cambyses ten shekels (£1 10s.) are given for an ox, and fifty-eight shekels (£8 14s.) for eight ‘fine sheep’—that is to say, about a guinea apiece. The price, however, included the ‘bakshish’ paid to ‘an Arabian’ who looked after them. In the same reign a ‘mouse-coloured ass, seven years old,’ was sold for fifty shekels (or £7 10s.), though we also hear of an ass of inferior

quality whose price was only thirteen shekels (about £2). It is rather surprising, after this, to learn that a copper libation-bowl and cup together cost as much as four manehs nine shekels (or £37 7s.); at the same period a good-sized house, with field attached, could be had for only four and a half manehs (£40 10s.), while the rent of another house, with the use of the water in its neighbourhood, amounted to one maneh. In the first year of Cambyses, one maneh seven shekels of silver were paid for a month's work to a seal-cutter, and half a shekel (1s. 6d.) for painting the stucco of a wall. The work alone seems to have been paid for, the materials being furnished to the workmen, as is still the custom in the East. This at all events was the case as regards metal work; thus, in one instance, three manehs of iron were handed over to an 'ironsmith' to be made into rods for bows. Three manehs of iron, it may be added, were considered sufficient for the manufacture of six swords, two door-rings, and two bolts.

In the fourteenth year of Nabonidos (B.C. 542) a contract was made by a builder which included two shekels (or 6s.) for 200 bundles of reeds for constructing a bridge across a canal, one shekel for 100 bundles of reeds for torches, fifty shekels (£7 10s.) for 500 loads of bitumen for building a tower, fifty-five shekels for 8000 loads of brick, and one shekel for a piece of wood for the handle of an axe. In the same year skins for covering a boat or coracle cost one maneh (£9), while in the previous year eighteen sheep were sold for thirty-five shekels (not quite 6s. each), and twelve shekels derived from the rent of a house were expended upon digging a trench or canal. In the fourth year of Nabonidos one maneh was demanded for an ass; and in the following year one maneh seven shekels were paid for an ox, and six shekels (or 18s.) for a sheep.

The price of wine varied according to its quality. Thus, at one and the same time, two 'large' casks of new wine were purchased for eleven shekels, and five other casks for ten shekels. Wine was chiefly imported from Armenia and Syria, the wines of the Lebanon being especially prized. Nebuchadnezzar has left us a list of several of the best, among which we find the wine of Helbon, mentioned by Ezekiel^[21].

Clothes were comparatively inexpensive. In the time of Nebuchadnezzar, for example, a 'mountain-cloak' cost four and a half shekels (13s. 6d.), though doubtless this particular article of dress was made of cheap materials. Half a maneh of silver, together with a *gur* of corn from the royal

granary, were given in the seventeenth year of Nabonidos to five men for work performed in the city of Ruzabu, in the presence of the superintendent of the clothing department, from which we may infer that they were working tailors. Wages, however, were low, partly in consequence of the employment of slave labour. Even a porter of the royal granary received only half a shekel a month by way of pay.

On the other hand, grain was correspondingly cheap. In the reign of Cambyses, two artabs (or about 100 quarts) of corn cost six and a half shekels, and as a quart of corn was considered in ancient Greece a sufficient daily allowance for a man, we may calculate that the Babylonian could manage to live on $2\frac{1}{2}d.$ a day. Under Nebuchadnezzar twelve *qas*, or the third part of an artab, of sesame were sold for half a shekel—that is to say, the quart of sesame cost a little over a penny. Similarly, in the twelfth year of Nabonidos, one maneh (or £9) was paid for six *gurs* of sesame, and as the *gur* contained five artabs, the quart of sesame would have been a little less than $1\frac{1}{2}d.$ In the seventh year of Nebuchadnezzar one shekel only had been given for one and one-third artabs of dates, or about a halfpenny a quart; while in the thirty-eighth year of the same reign we find the quart valued at only one-twentyfifth of a penny.

Prices, however, were frequently calculated in grain and dates—that great staple of Babylonia—and payments accordingly made in kind instead of in coin. The tithes, for instance, were always paid to the priests in kind, as among the Jews. In the first year of Cambyses we are told that the price of an ox was 150 *gur*, 114 *qas* of dates, the *gur* containing three homers. It was in dates, again, that the wages of the gardeners were paid by the priests attached to the temples of Babylon. In the nineteenth year of Darius 120 *gur* of dates were sold for one maneh thirty-five shekels of silver. At this time, therefore, the quart of dates was worth about the tenth part of a penny.

Fish, both from the sea and from fresh water, were a common article of food, and must have been cheap and plentiful. We find them included among the offerings made to the gods. As at Athens, salted fish were largely eaten.

The streets, where troops of dogs acted as scavengers, as they still do in the East, were lined with shops; the business was sometimes conducted by a woman, and often consisted of a joint partnership. Deeds relating to the

formation or dissolution of a partnership are by no means rare. Generally it was customary for each of the persons who entered into partnership to contribute an equal share to the business, the profits on the business, both 'in town and country,' being afterwards divided equally between them. When one of the parties contributed more than the other, provision was made for a proportionate distribution of gains and losses. The following deed may be taken as an illustration of the way in which a partnership could be dissolved:—'A partnership was entered into between Nebo-yukin-abla and his son Nebo-bel-sunu on the one side, and Musezib-Bel on the other, which lasted from the eighteenth year of Nabopolassar, King of Babylon, to the eighteenth year of Nebuchadnezzar. The contract was brought up before the judge of the judges. Fifty shekels of silver had been adjudged to Nebo-bel-sunu and his father Nebo-yukin-abla. No further agreement or partnership exists between the two parties. They have ended their contract with one another. All former obligations in their names are rescinded.' Then follow the names of the witnesses, and the date, 'The eighth day of Sebat (January), the eighteenth year of Nebuchadnezzar, King of Babylon.'

A business could be carried on by the wife in the absence of her husband. A document belonging to the second year of Neriglissor or Nergal-sharezer (B.C. 559) shows this very clearly. Here we read:—'As long as Pani-Nebo-dhemi, the brother of Ili-qanua, does not return from his travels, Burasu, the wife of Ili-qanua, shall share in the business of Ili-qanua, in the place of Pani-Nebo-dhemi. When Pani-Nebo-dhemi returns she shall leave Ili-qanua and hand over the share to Pani-Nebo-dhemi.' Among the witnesses to this deed is a certain 'minister of the king' called Solomon (Salammanu), the son of Baaltammuh. The name indicates that he had come from Palestine or Syria, and it is therefore interesting to find him holding high office at the Babylonian court.

Other goods besides money and houses might serve as the subject of a deed of partnership. Thus, in one instance, we are told that '200 barrels full of good beer, twenty empty barrels, ten cups and saucers, ninety *gur* of dates in the store-house, fifteen *gur* of chickpease (?), and fourteen sheep, besides the profits from the bazaar, and whatever property Bel-sunu has accumulated, shall be shared between' the contracting parties.

Even the members of the royal family did not consider commercial dealings beneath them. The name of Belshazzar, the son of Nabonidos,

more than once appears in the contract-tablets, though it is true that he acted indirectly through the steward of his house, as well as through his secretaries. One of these tablets reads as follows:—

‘Twenty manehs of silver, the price of wool, the property of Belshazzar, the son of the king, which, by the hands of Nebo-tsabit, the steward of the house of Belshazzar, the son of the king, and the secretaries of the son of the king, has been handed over to Nadin-Merodach, the son of Basa, the son of Nur-Sin, in the month Adar, the silver, namely 20 manehs, he shall give. The house of ... a Persian, and all the property of Nadin-Merodach in town and country shall be the security of Belshazzar, the son of the king, until Belshazzar shall receive in full the money. The debtor shall pay the whole sum of money as well as the interest upon it.’ The names of six witnesses, including that of the priest who drew up the deed, are then added, as well as the date: ‘At Babylon, the twentieth day of the month (Adar), the eleventh year of Nabonidos king of (Babylon).’

It will be seen from this document that Belshazzar, whose name has been made familiar to us through the Book of Daniel, was not averse to acting as a wool merchant, when money could be made thereby.

It will also be seen that in his trading transactions the heir to the throne had to conform to the requirements of the law like the meanest of his father’s subjects. Witnesses and a properly attested deed were necessary to protect the prince against fraud. The fact illustrates the commercial and legal instincts of the Babylonians, as well as the restrictions that were placed by them on the exercise of the royal authority.

Money-lending was naturally carried on upon an extensive scale. Under Nebuchadnezzar and his successors the usual rate of interest was twenty per cent., the interest being paid each month, though at times we find it was reduced to thirteen and a third per cent., and in a time of famine even remitted altogether by a patriotic money-lender. In concluding a bargain it was ordinarily stipulated that if the money were not paid by a specified date, interest upon it at the customary rate should run on until it was paid in full.

In Nineveh in the age of Tiglath-pileser III and Sennacherib the rate of interest seems to have been different from that which afterwards prevailed in Babylonia. Thus we are told of six manehs ten shekels of silver being

lent out at interest which was to be at 'a fourfold' rate, and of two talents of 'the best bronze' being given on a loan, the interest on them to be 'three times' their value. In Assyria, besides the national standard of 'the royal maneh,' the Hittite standard of 'the maneh of Carchemish' was in use, according to which commercial transactions could be regulated.

The metal, whether gold, silver, or bronze, was measured out by weight, and it was only in the later Babylonian period that this somewhat cumbersome way of conducting business was replaced by symbols or coins. On these was marked the weight represented by each.

The extensive system of credit implied by the Babylonian contract-tablets proves what a trading centre Babylonia had become. Goods were imported into it from all parts of the known world, and in return corn, dates, and palm-wine were exported abroad. A good deal of the business, however, carried on by the money-lenders was due to the necessity the poorer classes were frequently under of paying their taxes in coin. Many of these taxes, it is true, could be paid in kind, but it is probable that the capitation-tax, which was levied on the whole community, had to be paid in cash. The tribute paid by the subject-states, as well as the contributions to the royal treasury due each year from the cities and districts of the kingdom, had also to be made in coin. These contributions were levied both in Assyria and in Babylonia. In the time of Sennacherib, for example, the contribution due from Nineveh was assessed at thirty talents; that from Calah at five. At the same time, Carchemish, the ancient Hittite capital, had to pay 100 talents.

In Babylonia, if not in Assyria, even the brick-yards were taxed, the privilege of making bricks—the universal material of the buildings of the country—requiring the permission of the Government. It is also probable that the owners of property, if not the tenants, were obliged to contribute a fixed amount of grain each year to the royal *sutummu*, or 'granary,' which existed in each of the large towns, and out of which grants of food were made to the religious and civil functionaries.

Whether houses were taxed is not known. At all events nothing is said upon the subject in the numerous deeds that relate to them. These deeds, however, throw a flood of light on the laws which regulated their sale or letting. The exact limitations of the property to be let or sold and the condition of the house were minutely described, as well as the length of

time for which it was to be leased, and the rent to be paid by the tenant. The tenant usually agreed to return the property in the state in which he found it, keeping the fabric in repair at his own expense and carefully cultivating the garden. Any transgression of the terms of the lease was punished with a severe fine.

The value of the house depended on its size, position, and character. In the reign of Cambyses we hear of a house being let for three years at sixteen shekels a year, while, at the same time, another house was rented for a year at only five shekels. In the latter case it is stipulated that half the rent shall be paid at the beginning and the other half in the middle of the year, and that the tenant shall repair all damages to the walls of the building. Any transgression of the terms of the contract was to be punished with a fine of ten shekels, or double the amount of the rent, which was to be paid to the wife of the owner of the house. It is therefore probable that the husband was dead, and that the property had passed into the hands of his widow.

At the beginning of the same reign we find four and a half manehs of silver (or £40 10s.) given for a field and house, and another house sold in the joint name of a man and his wife for two manehs (or £18). At the same time a woman pays only two shekels (or 6s.) for the house 'in which she lives.' It must, therefore, have been a mere hovel. It is curious to learn how many of the houses which were sold or let in Babylonia belonged to women; some of them had doubtless formed part of their dowries, but others must have been left to them by their husbands after death. One of them, which belonged to a lady named Buhiti, is described as being situated in 'the Broad Street' of Babylon, 'the passage of the gods and the king.' In the deed of sale of this house it is stipulated that if the buyer asserts that 'the house has not been given up' to him, the owner shall receive twelve times the amount of its purchase-money.

The same formalities which accompanied the sale or letting of a house in Babylonia were observed in Assyria. Here, for example, is the translation of a deed of sale, which is dated in the year 692 B.C., or eleven years before the death of Sennacherib: 'The nail-mark of Sar-ludari, the nail-mark of Atar-suru, (and) the nail-mark of the woman Amat-suhla, the wife of Bel-dur, a captain (?), the owner of the house which is sold.' [Then follow four nail-marks.] 'The house, well-constructed, with its beams and doors, situated in the city of Nineveh, adjoining the houses of Mannu-ki-akhi and Ilu-ittiya,

and the Street of the Messenger, has been sold, and Tsil-Assur, the superintendent, an Egyptian, has bought it for one maneh of silver, according to the royal standard, in the presence of Sar-ludari, Atar-suru, and Amat-suhla, the wife of its owner. The full sum has been paid, the house in question has been bought: there shall be no retractation or annulment of the contract. Whosoever hereafter, among the sellers, shall claim an annulment of the contract from Tsil-Assur shall be fined ten manehs of silver. The witnesses are: Susanqu, the son-in-law of the king, Kharmaza, the captain (?), Rasuh, the sailor, Nebo-dur-zikari, the spy, Kharmaza, the naval captain, Sin-sharezer, and Zedekiah. Dated the sixteenth day of the month Sivan (May), in the eponymy of Zazâ, the governor of Arpad. The contract has been signed in the presence of Samas-yukin-akhi, Latturu, and Nebo-sum-utsur.'

In Babylonia, where education was more widely spread, the contracting parties would have attached their names and seals to the deed instead of their nail-marks. One of the witnesses, Zedekiah, seems to have been an Israelite, while the purchaser of the property is described as an Egyptian, who held a high position in Nineveh. It would therefore appear that foreigners in Assyria were able to hold property as well as offices of state.

House-property, like slaves, could be bought and sold through the intervention of an agent. In this case the purchaser was careful to state that the property which had been bought did not belong to its nominal buyer, and also to keep the deed of sale in his own hands. When the money for the purchase was advanced by the agent it was agreed that it should be repaid within a limited time—in one instance within two months; failing its repayment within the specified period, what had been bought became the property of the agent. Advantage was occasionally taken of this system of purchase to buy a piece of land or other property in the name of the wife, whose property was usually protected from distraint for her husband's debts.

The legal formalities attendant on the sale of property in Assyria and Babylonia are an interesting commentary on the purchase of Hanameel's field by Jeremiah^[22]. The prophet agreed to pay seventeen shekels of silver for it, and the money was accordingly weighed out in the presence of witnesses. He then added his signature to the deed, and sealed it afterwards, as it would appear, enclosing the whole in a clay envelope, on which was

inscribed a statement of its contents. The witnesses had previously attached their names to the document. The deed, containing both the document that had been sealed and the document that was exposed to view^[23], was subsequently deposited 'in an earthen vessel,' which must have resembled the earthen jars in which the Babylonian contract-tablets are found. Such jars served the purpose of a modern safe, and were each appropriated to a particular set of documents, or to those that related to a particular family. Who can say whether we shall not yet recover the deed of sale signed by Jeremiah, and the jar to which it was entrusted, as we have already recovered the similar deeds that were drawn up and signed by his contemporaries in Babylonia? Stranger events have happened in the romance of modern excavation.

CHAPTER VI

SLAVERY AND THE AGRICULTURAL LABOURER

In Assyria and Babylonia, as throughout the ancient world, slavery formed one of the most important elements of social life. The distinction between the freeman and the slave was one which it is difficult for us of Western Europe to realize. The gulf between the two was profound while it lasted, but it was not necessarily permanent. The slave might always look forward to the recovery of his freedom. Nay, more, it was possible for him to rise to high offices of state and become the political ruler of his former master. Moreover, between the slave and his owner there was none of that antagonism of race or colour which has characterized slavery in the America of our own days. They belonged to the same or an allied race, sometimes to the same population: their ideas, beliefs, religion, even education, were not very dissimilar. The slave was, in fact, a member of the family, like the child, with this difference, however, that when the child grew up he necessarily became his own master, whereas the slave remained subject to another until he recovered his freedom.

From an early period the slave had been an object of care to the legislature. In Accadian law it had already been laid down that the life of the slave was not absolutely at his master's disposal. If the master, it is enacted, kill, beat, maim, or destroy the health of the slave, the hand which has so offended shall pay each day half a measure of corn. This was doubtless to be given to the slave for his maintenance if he still lived; we are not informed as to who should receive it in case of his death. We hear, however, of a master receiving a maneh of silver as compensation for the murder of his slave by another person.

In later times a slave could even appear as party to a suit. In the tenth year of Nabonidos (B.C. 546) a slave called Nergal-ritsua brought the following case before the judges. He had been sent by his master with 480 *gur* of fruit from the fields to the ships of a certain Baalnathan, who had been commissioned to transport it to Babylon. A portion of the fruit was stolen on the way to that city, and Baalnathan, whose name indicates his

Phœnician origin, undertook to replace it. Instead of doing so he absconded, and had but just been caught again. Five judges deliberated on the matter and gave judgement in favour of the slave and his master.

The slave could also, under certain circumstances, engage in business upon his own account, and so lay by a sum of money by means of which he might eventually purchase his freedom. He could also hire himself to another than his own master. In the twenty-eighth year of Nebuchadnezzar (B.C. 577), for example, a deed was drawn up before several witnesses enjoining that 'on the day when Nebo-nadin-akhi the slave of Ina-Esaggil-suma-epus enters into the service of Ubar he shall give his wages' to his former master. In this case, however, it may be questioned whether the deed does not mean, not that the wages the slave received on first entering the service of another were to be given to his original owner, but that he was, as it were, lent by his master to a second employer, the wages he received from the latter being his master's property during the whole period of his absence from the latter's house.

The slave could become a freeman, either by manumission, or by purchase, or by proving that he had been unlawfully enslaved. He might also recover his liberty by being adopted as a son into the family of a citizen. His master might also lose him by his being taken into the household of the king as 'a royal servant,' or, in the case of a female slave, as a concubine. As the 'royal servant' enjoyed a considerable amount of civil power, the position was highly prized. Any slave, it would appear, was liable to be impressed into the royal service, just as he was liable to be adopted into a family. Accordingly, in buying a slave, it was usual for the seller to agree to bear all the risk and trouble which such claims would cause. Here, for instance, is a deed of sale which was registered at Borsippa before three witnesses in the twenty-ninth year of Nebuchadnezzar: 'The woman Bahu-edirat and Itti-Nebo-panya, the son of the woman Ubartu, the slaves of the lady Gusummu, the daughter of the lady Sabullatu, have been sold on account to Merodach-edir-napisti, the son of Mandidi, for half a maneh of silver in shekel pieces; Gusummu undertakes all responsibility, whether as plaintiff or defendant in regard to claims for freedom or for royal service on the part of the slaves.'

A curious case which was decided at Babylon on the seventeenth of Marchesvan, in the seventh year of Nabonidos (B.C. 549), illustrates the

attempts sometimes made by a slave to recover his freedom, and at the same time the care taken by the law that justice should be done to all parties, freemen and slaves alike. A certain Barachiel, whose name seems to show that he was of Jewish descent, had been sold in the thirty-fifth year of Nebuchadnezzar by Akhi-nuri, the son of Nebo-nadin-akhi, to a lady named Gaga. Gaga had given him to her daughter Nubta ('the Bee') as part of the latter's dowry, and Nubta had subsequently 'alienated him by a sealed contract in exchange for a house and slaves.' Barachiel then asserted that he was a freeman, born of a noble Babylonian family and unlawfully detained in servitude. The case accordingly came before the court, consisting of 'the high priest, the nobles, and the judges.' Akhi-nuri did not appear, and it was eventually decided, by the confession of Barachiel and a true account of his former life, that his claim was a fiction.

'Twice have I run away from the house of my master,' he said, 'but many people were present and I was seen. I was afraid, and said (accordingly) that I was the son of a noble ancestor. My citizenship has no existence; I was the slave of ransom of Gaga. I am a slave. Go now (pronounce sentence) upon me.' The court consequently 'restored him to his condition of slavery^[24].'

One of the proofs of his citizenship brought forward by Barachiel had been that he had joined the hands of the brother and daughter of Akhi-nuri in matrimony. It would therefore appear that this was a ceremony which could be performed only by a freeman, and that Akhi-nuri should have allowed Barachiel to perform it was a tacit admission that he was no longer a slave. In order to prevent similar attempts to escape on the part of the slaves, it was usual for the owners to brand or tattoo them, generally with their masters' names.

The husband and wife must often have been separated when a slave was sold. Thus in the time of Nebuchadnezzar we hear of a woman Sakinna and her daughter, a little girl of three years of age, being sold for thirty-five shekels of silver, or five guineas; and in the eighth year of the same reign a brother and sister sold two Persians, a slave-woman and 'her son who was upon her breast,' for nineteen shekels. The ancient Accadian law ordered that if children had been born to slaves whom their former owner had sold while still keeping a claim upon them, he should in buying them back take the children as well at the rate of one and a half shekel each. At times, however, husband and wife were sold together. In one case the price

received for a slave and his wife was fifty-five shekels, or £8 5s., part of which was paid on the spot, part on account; and in the reign of Cambyses two slaves who had been sold along with their wives, but afterwards reclaimed by the seller, were not given back to him without their wives. We even find that parents sold their children into slavery, especially if they were girls, and it is possible that debtors might be treated in the same way. By the early Accadian law, a son who denied his father was ordered to be shorn and sold as a slave.

The slave was regarded as a chattel, like any other kind of property. He could form a portion of a daughter's dowry, as we have seen; he could serve as the security for the payment of a debt; he could be lent by his master to a friend; and the master could hire him out, the wages he received in this way going into his master's pocket. His price depended on his strength, abilities, age, and appearance, and varied from a very high to a very low figure.

In parting with a slave the seller commonly stated that he did so 'in the joy of his heart,' which seems to mean that he had not been driven to the act by any faults in the slave himself. The expression, in fact, denoted that he had nothing to say against the slave's character, and that he was not deceiving the purchaser into a bad bargain. That the purchaser of a slave had to be on his guard is evident from a case which was brought before the judges in the early part of the reign of Nabonidos, and which has been translated by Dr. Oppert as follows:—'Beli-litu, the daughter of Bel-yusezib, the wine-merchant (?), gave the following evidence before the judges of Nabonidos, King of Babylon: "In the month Ab, the first year of Nergal-sharezer, King of Babylon, I sold my slave Bazuzu for thirty-five shekels of silver to Nebo-akhi-iddin, son of Sula, the descendant of Egibi; he has pretended that I owed him a debt, and so has not paid me the money." The judges listened, caused Nebo-akhi-iddin to be summoned and to appear before them. Nebo-akhi-iddin produced the contract which he had made with Beli-litu; he proved that she had received the money, and convinced the judges. And Ziriya, Nebo-sum-lisir, and Edillu gave (further) evidence before the judges that Beli-litu their mother had received the silver. The judges deliberated, and condemned Beli-litu to (pay) fifty-five shekels (by way of fine), the highest fine that could be inflicted on her, and then gave it to Nebo-akhi-iddin.' The text affords a good example of the independent position occupied by the Babylonian free-women.

The regulations relating to slavery were similar in Assyria to what they were in Babylonia. A deed of sale of three slaves, dated B.C. 709, in the reign of Sargon, may be quoted, as it is interesting on account of the names of three of the witnesses, Pekah (*Paqakha*), Nedabiah (*Nadbiyâhu*), and Ben-didiri, all of whom were evidently Israelites. Pekah and Nedabiah are described as holding offices of state. The slaves were sold by a certain Dagon-melech for three manehs of silver, 'according to the standard of the maneh of Carchemish,' and it is stipulated that if the seller or any of his sons, grandsons, or relatives shall maintain that the price was not paid, or that the contract had been violated by the purchaser, the latter was to receive ten times the amount of the price he had paid, while the offender was further punished with a fine of one maneh of gold (or £140) to the goddess Istar of Arbela.

Another deed of sale of somewhat later date is equally interesting on account of its contents. It relates to the sale of his daughter by a certain Nebo-rikhti-utsur for sixteen shekels of silver (£2 8s.) to a lady who wished to marry the girl to her own son and heir. The contract could be annulled by the father or relatives of the girl upon the payment of ten silver manehs, that is to say, £90. We learn from it that the women of Assyria had the same power of transacting business as the women of Babylonia, and that in both countries parents were able to sell their children into slavery. But it is new to find that a wife could be bought in this way.

There were few Babylonians so poor as not to be able to keep a slave; even one slave might possess another slave of his own. A deed exists, dated in the twenty-seventh year of Nebuchadnezzar, which records the sale of a female slave for two-thirds of a silver shekel (2s.) to 'the slave of Nebo-baladh-yulid, the porter' of the temple of the Sun-god at Sippara. The smallness of the price indicates the poverty of the purchaser, and as it is stated that the money was to be paid on account, it would seem that even the small sum required was not forthcoming at the moment. The deed was attested by several witnesses, the first of whom was a slave. Nothing can show more clearly what a definite legal position a slave must have occupied in Babylonia.

The large amount of slave-labour necessarily caused wages to be low; it also introduced into the country a numerous population, which might be dangerous in times of war or civil discontent. We know from the history of

Barachiel that the slave was not always contented with his lot in life, and sometimes seized an opportunity of running away. On the other hand, the slaves possessed neither cohesion nor discipline; they had no leaders, they belonged to different nationalities, and were without arms. Moreover, they were divided into different classes. There were the royal slaves, among whom the eunuchs may be included, who occupied posts of importance and power, and regarded themselves as the superiors of many of the poorer freemen. Then, secondly, there were the temple-slaves, devoted to the service of the gods, like the Nethinim in the temple of Jerusalem, whose persons were consecrated and sacrosanct. Thirdly, there were the household slaves, a large number of whom were virtually members of the family in which they lived, and who might look forward to being adopted by their masters. Those who belonged to rich households were probably well-fed, well-clothed, and little worked. Lastly, there were the slaves who laboured in the country, whose lot was doubtless harder than that of the slaves in the towns, but who, nevertheless, enjoyed a certain amount of freedom which country life necessarily brought with it.

It is probable, however, that the number of slaves employed in the country was vastly exceeded by that of the slaves who lived in the towns. The Babylonians were an agricultural people, and the greater part of the work carried on in the country was conducted by free men. They were irrigators, gardeners, shepherds, and goatherds, tenders of cattle, and agricultural labourers. The gardener and shepherd held a high place in popular esteem. Tradition alleged that Sargon I, the founder of the first Semitic Empire, and of the great library of Accad, had been a gardener before he was called to the throne through the love of the goddess Istar, and it further related that when, like Moses, he had in his infancy been consigned to an ark of bulrushes and bitumen, and cast upon the Euphrates, he was discovered and brought up as a son by Akki, the irrigator. Tammuz himself, the young and beautiful Sun-god, had been a shepherd, according to the old belief, and the Bedouin Arab, or nomad Aramaean, who usually looked after the flocks of the wealthy Babylonian in the later days of the kingdom, was not only a freeman, but respected on account of his strength, his courage, and his connexions.

We hear a good deal about the life of the Babylonian farmer or labourer from the fragments of an old Accadian work on agriculture, extracts from

which were provided with translations into Assyrian, and used as a reading-book by students who were learning Accadian^[25]. Here we are told that the agriculturist must begin his work in the sixth month of year, when he agrees with his landlord about his rent, pays his taxes to the Government, hedges in his fields, brings together his flocks, and works from dawn to dusk.

The sixth month, as Mr. Bertin points out, was Elul, hence we may conclude that the agricultural year originally began with Tisri, or September, the seventh month, and not with Nisan, or March. This throws light on the fact that Tisri was the first month of the Jewish civil year, and that the Feast of Trumpets was celebrated on its first day.

The tenure of a farm was of various kinds. In some cases the property belonged half to the landlord and half to the tenant, when the tenant bound himself to plough, sow, manure, and water, and to hand over the produce of the landlord's half to the agent appointed by the latter. In other cases the whole farm, with its produce, was shared equally between the landlord and the tenant; the tenant giving his labour, and the landlord in return providing him with carts, oxen, and other necessities. But there were several modifications of this system of partnership. The landlord might stipulate that the farmer should receive only a third, a fourth, a fifth, or even a tenth of the produce, the rest being appropriated by himself. In addition to this, it would seem, the tenant was required to pay a fixed rent, which consisted of two-thirds of the dates gathered from the trees on the farm, or their equivalent in money. The dates had to be handed over to the landlord on the last day of the month Marchesvan, or October. The landlord reserved to himself the right of dismissing his tenant, who was required to keep the farm in order, repair the walls and fences, plant date-palms, and water the young trees. When taking a new farm, moreover, on which there was no house, he was required to build the house in the middle of the property, paying the wages of the workmen when the work was finished. If the house was badly or improperly built, it is stated that he might be fined as much as ten shekels.

It must be remembered that all these are regulations of a very early period, and that as time progressed the tenure of land, and the laws and customs relating to it, necessarily became much more complicated. Still, the general outlines of the system remained unaltered; the farmer paid his rent

in kind rather than in money, and the tenure resembled that of the French *métayer*. The system of farming was essentially co-operative.

Some of the songs have been preserved to us with which the Accadian peasants beguiled their labour. They, too, were translated into Assyrian, and formed part of a reading-book used by students of the ancient language. This is how the cattle were addressed as they ploughed the field:—

A heifer am I;
To the cow am I yoked:
The plough-handle is strong—
A shaft of palm—
Lift it up, lift it up!

Or again, while threshing was going on, the peasant would sing:—

My knees are marching,
My feet are not resting;
Working not thyself,
Drive me in company!

Like all agricultural populations the Babylonian peasantry delighted in proverbs: ‘Like an oven which is old, be firm against opposition.’ ‘The corn is high, how know we it is ripe? The corn is cut down, how know we it is good?’ ‘The fruit of death a man may eat, and yet find it the fruit of life.’ Such are some of the sayings which have come down to us from the popular wisdom of ancient Chaldea.

CHAPTER VII

TRADES AND PROFESSIONS

Society in Assyria and Babylonia in the later period to which most of our documentary evidence belongs was highly complex. Trades and professions of all kinds were recognized by it. Agriculturists, shepherds and drovers, masons, carpenters, brickmakers, blacksmiths, silversmiths, weavers, dyers, tailors, bakers and cooks, musicians, barbers, wine-merchants, sailors and soldiers, architects and doctors, bankers and poets, lawyers and priests, scribes and librarians, all alike existed and exercised their trade or profession, like their representatives in modern days. Caste, such as we find in India, was unknown. The son was free to follow any trade or profession he liked, irrespective of that of his father. Naturally there was a tendency for the father to bring up his son to his own calling; the son of a priest, for instance, was often a priest, the son of a blacksmith a blacksmith, but it was a tendency only, and the exception to it was the rule. Even the king himself might be a usurper, the 'son of a nobody,' as he was termed, who had begun life in some humble trade.

In Babylonia, and still more in Assyria, an aristocracy existed by the side of the king, which derived its descent from the ancient families of the land. They were the 'princes' referred to in Jeremiah^[26], among whom was Nergal-sharezer, who afterwards seized the crown. But even the 'princes' included those who owed their position to the personal favour of the king. The Rab-shakeh (*Rab-saki*), or Prime Minister, the Tartan (*Turtannu*), or Commander-in-chief, and other high functionaries, were appointed by the monarch, and might be selected by him from among the dregs of the people, as well as from among the members of the nobility.

The king, in fact, was an autocrat, and consequently the source of all honour. But, as in Russia, his autocracy was tempered and controlled by a powerful bureaucracy. The civil service was on a vast scale, descending from the governors of provinces and cities, from the statesmen who surrounded the king and managed affairs at home and abroad, and from the heads of departments, down to an army of clerks and subordinate officials.

A considerable part of the revenue raised by taxation was devoted to the payment of the bureaucracy.

Ability to read and write and to speak foreign languages was a passport to its ranks. In Assyria its influence was counterbalanced by that of the army, which seems to have been mainly recruited at home. It was by means of its well-disciplined and well-armed forces that Assyria was enabled to establish its empire, and it was the exhaustion of that army which brought about the fall, not only of the empire, but of Assyria itself.

It took several centuries to bring the Assyrian army to that point of perfection which it attained in the time of Tiglath-pileser III and Sargon. It consisted of infantry and cavalry as well as of a corps of chariot-drivers. The chariots had two wheels and a single pole, and were drawn by a couple of horses, to which a spare horse was often attached, in case of accidents. The chariot held a driver and a warrior; if the latter was the king, he was accompanied by an armed attendant, sometimes even by two. They all rode standing, and were armed with bows and spears.

In the earlier days of the Assyrian monarchy chariots were employed in preference to cavalry. As time went on, however, the horse-soldiers were increased, while the number of chariots was lessened. At first the cavalry rode without saddles, with bare legs, and armed with the bow. Subsequently saddles came into use, the unarmed groom who had previously looked after the horse ceased to run by its side, and along with the mounted archers mounted spearmen made their appearance. The rider's legs were completely protected by leathern drawers over which high boots were drawn, laced in front. This costume was introduced towards the end of the reign of Tiglath-pileser III. In the time of Sennacherib the dress was improved by a closely-fitting coat of mail.

The infantry were about ten times as numerous as the cavalry, and were divided into heavy-armed and light-armed. The regular dress consisted of a peaked helmet and a tunic, which was fastened round the waist by a girdle, and descended half-way down the thighs. From the time of Sargon onwards, however, the infantry were separated into the two classes of bowmen and spearmen. The bowmen were either light-armed or heavy-armed, the latter being again subdivided into two classes. One of these classes wore sandals, and a coat of mail over the tunic. The other class was clad in a long fringed

robe which came down to the feet, over which a cuirass was worn; they carried a short sword at the side, and used sandals. They were accompanied by attendants, one of whom held a long rectangular shield of wicker-work. The dress of the light-armed bowmen consisted simply of a kilt and of a fillet bound round the head. The spearmen were distinguished by a crested helmet and a circular shield: their feet were usually bare.

Sennacherib introduced a corps of slingers, possibly, as Canon Rawlinson suggests, in imitation of Egyptian modes of warfare. They were clothed in helmet and cuirass, leather drawers, and short boots. Sennacherib made changes in the equipment of the bowmen, providing the second class of heavy-armed among them with leather greaves and boots, and depriving them of the long robe. The first class now usually appear without sandals, and their head-dress consists of an embroidered turban with lappets, not unlike the *kuffiyeh* of the modern Bedouin. In addition to the other forces of the army a corps of pioneers was also established, armed with double-headed axes, and clothed with conical helmets, greaves, and boots. The helmets, it may be observed, were made of iron or bronze, underneath which was a leather cap, while the coats of mail consisted of metal scales sewn to a leather shirt. The shields were partly of wicker-work, partly of metal, and were of various shapes. The heads of the spears and arrows were of bronze, more rarely of iron; in ancient Chaldea stone weapons had also been used. The metal heads were sometimes socketed, sometimes tanged.

The army carried with it, on the march, standards, tents, baggage-carts, battering-rams, and other engines for attacking a town. The tents were occasionally very elaborate, that of the king, for instance, being accompanied by a cooking and dining tent. They were furnished with chairs, tables, couches, and various utensils.

The commissariat department has left us some records of the amount of the provisions required for the troops at home. Thus in the first year of Nabonidos seventy-five *qas* of flour and sixty-three *qas* (or nearly 100 quarts) of beer were furnished to the troops in the neighbourhood of Sippara on the eleventh of the month Iyyar, presumably, therefore, for their maintenance during a given period; and in the second year of the same king, fifty-four *qas* of beer were provided on the twenty-ninth of Nisan 'for the troops which had marched from Babylon.' At the beginning of Nebuchadnezzar's reign we find a contractor guaranteeing 'the goodness of

the beer' that had been furnished to 'the army which had entered into Babylon.' In the first year of Nabonidos, three *gur* of sesame were ordered for the use of 'the bowmen' during the first two months of the year, and in the thirteenth year of the same king, fifteen soldiers were provided with five *gur* of wheat. Accordingly, rather more than two bushels and a half were allotted to each man.

The Assyrians were essentially a military nation, and never turned their attention to naval matters. When Sennacherib wished to pursue the relics of Merodach-baladan's troops across the Persian Gulf, he had to fetch Phœnician sailors to build and man his ships. On the Tigris, rafts on which heavy monuments were transported, or small round boats like the *kufas* still in use on the river, were almost the only means employed for crossing the water. When the Assyrian army had to pass a river pontoons were thrown across it, or else the soldiers swam across the stream on inflated skins. The ferry-boat was rarely used.

In this respect the Babylonians were markedly different from their northern neighbours. 'The cry' of the Chaldeans, whose original home was among the marshes at the head of the Persian Gulf, was in their ships. One of the earliest seats of culture in Babylonia was the seaport of Eridu, which carried on an extensive trade by sea with distant lands.

Certain forms of ships were named after the districts or cities of Babylonia where they had been invented or were chiefly used. A fleet, in fact, was kept by the later kings of Babylon, as well as an army, and a receipt, dated in the month Tammuz, or June, of the sixteenth year of Nabonidos, runs as follows:—'210 *qas* (about 300 quarts) of dates have been given to Samas-sumebus, the son of Sula, from the royal granary, for the support of the sailors during the sixteenth year' of the king's reign. As the Phœnician ships of war employed by the Assyrians were biremes, with two tiers of oars, it is probable that the Babylonian war-ships were at least of the same size.

Ships were often hired for the conveyance of goods; in the tenth year of Nabonidos, for example, a shekel and a quarter were given by Belshazzar 'the son of the king,' through the agency of Bel-sar-bullidh, for the hire of a boat, in order to convey three oxen and twenty-four sheep for sacrifice at the beginning of the year in the great temple of the Sun-god at Sippara. The

boatmen were at the same time furnished with sixty *qas* of dates. In the time of Nebuchadnezzar, three shekels, or 9s., were paid for the hire of a grain-boat, thirty-two shekels, or nearly £5, being given at the same time for an ass.

The king, it may be observed, kept a state-barge on the Euphrates. A contract has been preserved which informs us that in the twenty-fourth year of Darius a new state-barge was made for the king, the two contractors agreeing to work upon it from the beginning of Iyyar, or April, to the end of Tisri, or September, and employ one particular growth of wood for the purpose.

Among the various trades that were represented in Babylonia the only one that need be specially noticed is that of the blacksmith. Originally only the coppersmith was known; when iron, however, came into use the ironsmith took his place by the side of the coppersmith, whose trade ceased to have the importance it once possessed. A document has been preserved which acknowledges the payment of six *qas* (about eight and a half quarts) of flour to 'Libludh, the coppersmith,' for overlaying a chariot with a lining of copper in the second year of Nabonidos.

The cost of building may be gathered from a contract which was made in the sixth year of the same king's reign. Here we read: 'It is agreed that twelve manehs of silver (£108) be paid for bricks, reeds, beams, doors, and chopped straw for building the house of Rimut,' who was a grandson of the priest of the goddess Beltis. The contract was undertaken by the grandson of another priest, 'the priest of Sippara.' At another time we hear of four shekels of silver, or 12s., being paid for certain loads of brick. The material cost a good deal more than the wages of the men who made or delivered it. Remembering the price of corn, we have only to compare the cost of building a house with the following receipt, which is dated in the first year of Cyrus: 'One *gur* (180 *qas*) of corn from the granary of the store-house on the river (Euphrates) for the wages of the men who have carried to the store-house the corn that has arrived from Borsippa.'

The doctor had long been an institution in Assyria and Babylonia. It is true that the great bulk of the people had recourse to religious charms and ceremonies when they were ill, and ascribed their sickness to possession by demons instead of to natural causes. But there was a continually increasing

number of the educated who looked for aid in their maladies rather to the physician with his medicines than to the sorcerer or priest with his charms. The British Museum contains fragments of an edition made for the library of Nineveh of an old and renowned Babylonian treatise on medicine, which seems to have emanated from the school of Borsippa. In this work an attempt is made to classify and describe diseases, and to enumerate the various remedies that had been proposed for them. Some of the prescriptions are of inordinate length, containing a mixture of the most heterogeneous drugs. At other times the patient was given his choice of the remedies he might adopt. Thus, for an attack of spleen, he was told that he might 'slice the seed of a reed and dates in palm-wine,' or 'mix calves' milk and bitters in palm-wine,' or 'drink garlic and bitters in palm-wine,' or finally try several other recipes which are severally named. 'For an aching tooth,' we are told, 'the root of the plant of human destiny (perhaps the mandrake) is the medicine; it must be placed upon the tooth. The fruit of the yellow snakewort is the medicine for an aching tooth; it must be placed upon the tooth.... The roots of a thorn which does not see the face of the sun when growing is the medicine for an aching tooth; it must be placed upon the tooth.' In the midst of all these prescriptions, however, room was still found for some of the old superstitious charms and incantations, which might be tried when everything else had failed. The practice of medicine had advanced to a much higher point in Egypt, but it is probable that it was from Babylonia rather than from Egypt that the Jews acquired their knowledge of it. At all events the name of King Asa who 'sought not to the Lord, but to the physicians^[27],' not only signifies 'physician,' but is of Aramaic origin, pointing to the fact that medical knowledge came to Judah from North-eastern Asia. It will be remembered that when Hezekiah was 'sick unto death,' Isaiah ordered a poultice of figs to be laid upon the boil from which he suffered^[28].

In a country of merchants and traders, where law entered so largely into the daily life of the people, it was inevitable that lawyers should be numerous. At the head of the profession stood 'the judges,' who were appointed by the king. Over the judges presided a superior judge—the Chancellor, as we may call him—who took his seat among them in important cases. Examples have already been given of the cases which were brought before them, and of the procedure of the court. Cases, however,

might be settled by arbitration; in this event, the matter was brought before an official called the *gugallu*, and witnesses were produced on both sides. Here, for instance, is the report of a case which happened in the twenty-eighth year of Nebuchadnezzar:—‘On the second day of the month Ab (July), Imbiya summoned his witnesses to the gate of the house of Bel-nadin, the *gugallu*; against Arrabi, the grandson of the superintendent of the works, he alleged that a cloak and kilt belonging to himself had been carried off by him. If he convicts him, Arrabi shall return the cloak and kilt to Imbiya; if he does not convict him, Arrabi shall stand acquitted. If Arrabi does not appear on the second day of the month Ab, without witnesses he shall restore the cloak and kilt.’ Then follow the names of the witnesses produced by Imbiya.

An interesting case which was tried before the judges in the ninth year of Nabonidos (B.C. 547) has recently been translated by Dr. Peiser. It concerned a Syrian family settled in Borsippa, whose names, Ben-Hadad-nathan, ‘the god Ben-Hadad has given,’ Ben-Hadad-amar, ‘Ben-Hadad has spoken,’ and Aqab-ili, ‘Jacob is god,’ are especially worth the attention of the Biblical student. ‘Bunanit,’ we read, ‘the daughter of the Kharitsian, made the following statement before the judges of Nabonidos, the King of Babylon, “Ben-Hadad-nathan, the son of Nikbaduh, obtained me for a wife, and received three and a half manehs of silver as my dowry, and I bore him one daughter. I and Ben-Hadad-nathan, my husband, bought and sold with the money of my dowry, and we purchased eight canes of land occupied by a house in the district called *Beyond the Galla* in Borsippa for nine manehs forty shekels of silver, and two and a half manehs of silver which we had borrowed from Iddin-Merodach the son of Iqisa-abla of the family of Nur-Sin, and we purchased the house together. In the fourth year of Nabonidos, King of Babylon, I demanded my dowry from Ben-Hadad-nathan, my husband, and Ben-Hadad-nathan willingly registered the eight canes on which the house stood in Borsippa, and handed them over to me for ever, and declared in the deed that Ben-Hadad-nathan and Bunanit have paid in common two and a half manehs of silver which they had borrowed from Iddin-Merodach, and had given towards the price of the aforesaid house. This deed he sealed, and wrote upon it the curse of the great gods (against its transgressor). In the fifth year of Nabonidos, King of Babylon, I and Ben-Hadad-nathan, my husband, adopted Ben-Hadad-amar as a son, and registered the adoption, and declared that two manehs ten shekels of silver,

and the furniture of the house, should be the dowry of my daughter Nubta. My husband died, and now Aqab-ili the son of my father-in-law lays claim to the house and all that was registered and made over to me, as well as to the slave Nebo-nur-ili, whom we bought for money from Nebo-akhi-iddin. I have brought the defendant before you; give judgement upon us.” The judges heard their pleadings, read the deeds and bonds which Bunanit produced before them, and did not grant Aqab-ili possession of the house in Borsippa, which had been assigned to Bunanit in place of her dowry or of the slave Nebo-nur-ili whom she and her husband had bought with money, or of any of the property of Ben-Hadad-nathan. They confirmed Bunanit and Ben-Hadad-amar in the validity of their deeds. Iddin-Merodach was first to receive in full the two and a half manehs which had been given towards the purchase of the aforesaid house; then Bunanit should receive in full her dowry of three and a half manehs of silver, and part of the property of her husband. Nubta should receive the slave Nebo-nur-ili, according to the stipulation of her father. By the order of the judges of the country.’ Then follow the names of the six judges and their two clerks, and the date (the twenty-sixth of Elul or August, B.C. 547), and the place of registration (Babylon).

The poet and musician each occupied a place in the social system of Babylonia. As far back as the age of the Judges in Israel, a poet at the Babylonian court was rewarded with the present of a piece of land for some verses which had pleased the sovereign. Figures of musicians often appear in the Assyrian sculptures. One of them wears a curious cap of great height, and shaped like a fish. The instruments on which they played were numerous; drums and tambourines, trumpets and horns, lyres and guitars, harps and cithers, pipes and cymbals, are all represented on the monuments. Besides single musicians, bands were employed, under the conduct of leaders who kept time with a double rod. Occasionally the music was accompanied by dancing, sometimes also by clapping the hands. In one instance three captives are depicted playing on the lyre, and proving that like the Babylonians the Assyrians also ‘required’ from their prisoners ‘a song^[29].’ Canon Rawlinson notices that the speaking-trumpet was known to the Assyrians as well as the musical trumpet. In the representation of the conveyance of a colossal bull from the quarries of the Baladians to the palace of Sennacherib, one of the overseers is standing on the body of the bull, and giving orders through a trumpet to the workmen.

The most striking fact brought out by a survey of the trades and professions carried on in the two great kingdoms of the Tigris and Euphrates is the industrial character of their population. This indeed was more the case in Babylonia than in Assyria, where the military organization became predominant, and eventually fell crushed by its own weight. But even in Assyria the merchant was a leading figure, and the campaigns of the later kings were directed by the jealousies of trade. In neither kingdom was there anything that resembled a feudal aristocracy. Below the monarch and the civil service stood a large middle class, whose chief aim in life was the acquisition of riches. The foundation of the fabric of the state was essentially plutocratic. A man's worth was measured by his wealth, and in Babylonia, at least, the possession of money meant power and dignity. Hence the keen interest taken in commerce by all classes of the community, from the king downward; hence, too, the independent position occupied by women, and the right they had to buy and sell on their own account. There was, however, a fatal flaw in the industrial system of Babylonia. This was the existence of slavery. It lowered the position of the free labourer, it depressed his wages, and enabled the capitalist to tyrannize over him. The overthrow of the commercial prosperity of Babylonia was due more to the slavery that existed in its midst than to the wars and invasions that came upon it from abroad.

CHAPTER VIII

THE RELIGION OF THE PEOPLE

The religion of Assyria and Babylonia was substantially the same. In both countries it was derived in the first instance from the beliefs of the early Accadian or Sumerian population. Every object and force of Nature was supposed to possess a 'spirit' or 'life,' corresponding to the 'spirit' or 'life' of man. It was because they were thus endowed with a spirit of their own that the stars journeyed through the sky, that the arrow sped through the air, or that the fire consumed the victim. Even the earth and the heaven were possessed of 'spirits' of their own through which they were able to act. All Nature, in fact, was alive, but the life was like that of the individual man, and manifested itself in the same way. To the primitive inhabitant of Chaldea, life and motion were synonymous terms.

Gradually the spirits became separated in thought from the objects or forces to which they belonged. The whole world became filled with demons, supernatural agencies whose power and scope of action were as limited as that of the objects of Nature out of which they had been formed. Like the objects of Nature too, they were in no sense moral agents. The same spirit or demon could be at once harmful and beneficent. The fire that slays also warms and supports mankind. At the same time the demons were more usually harmful than beneficent, because in an early condition of society man has not yet learned to subdue Nature to his own use and benefit. Evil rather than good seems to him to predominate in the world.

The aid of the sorcerer was invoked to ward off the attacks of hostile demons or to compel them to become the friends of man. It was only the sorcerer, the medicine-man as he would be called in America, who was imagined to know the magic spells and incantations by means of which the multitudinous spirits that surrounded the Accadian could be driven away. Disease was believed to be due to possession by an 'evil spirit,' and its cure was sought in various magical ceremonies and words.

In course of time, however, certain of the spirits, whose action was regarded as more uniformly beneficent than the reverse, and who

represented the larger units of Nature, came to assume a sort of supremacy over the rest. The spirit of the earth or under-world, the spirit of the water, the spirit of the sky, began to rank above the spirits of the individual objects that are to be found in the earth, or water, or sky. Certain of the spirits of the old Accadian creed thus began to pass into gods.

The change was assisted by the existence of totemism in ancient Babylonia. Certain animals—or rather the ‘spirits’ of these animals—were regarded as peculiarly sacred; their flesh was forbidden to be eaten, and tribes and individuals called themselves after their names. There were tribes and individuals, for instance, of the name of ‘dog,’ to whom the dog was specially an object of veneration. These sacred animals came to be associated with the higher spirits who were tending to become gods.

With the transformation of some of the spirits or demons into gods went the transformation of the sorcerer into a priest. He did not, indeed, cease to be a sorcerer; his chief duty was still to attract or repel the spirits by charms and incantations, which he and other members of his class alone knew; but he now added to this duty the further duty of performing a fixed ritual and of offering prayer and praise to the new gods.

In this early epoch of history Babylonia contained two centres of religion and culture. One of these was Nipur, now Niffer, in the interior of the country, the other was Eridu, now Abu-Shahreïn, on the shores of the Persian Gulf. Nipur was the seat of the worship of Mul-lil, ‘the lord of the ghost-world,’ who had originally been the spirit of the earth, and it continued to be the chief home of Babylonian sorcery. Eridu, on the contrary, was influenced by a foreign culture which had probably come from Egypt. It was from Eridu that a purer and more exalted form of faith emanated than that which was practised at Nipur; its god, who had primarily been the spirit of the water, gathered about him attributes more worthy to be called divine; and his son Merodach became the ‘culture hero’ of Chaldea, the god who had introduced, as it was believed, the elements of civilization among his people, and was continually occupied in looking after their good. Babylon, it would appear, was a colony of Eridu; at all events Merodach of Eridu became the patron-deity of Babylon.

By conquest or peaceful colonization, or a mixture of both, the Semitic tribes of Northern Arabia entered Babylonia, and established their dominion

there. They adopted the civilization of their Accadian predecessors, at the same time modifying and improving it. But their conception of religion was totally different from that of the older inhabitants of the land. To the Semite the primary object of worship was the supreme Baal or 'Lord,' who manifested himself in the sun. By the side of Baal stood his wife and son, since the divine family was likened to the human family. In the Semitic household the wife was but the shadow and slave of the husband, in contrast to the Accadian household, where the woman was almost on a footing of equality with the man, and the wife of Baal accordingly assumed the same subordinate position in the divine family that was occupied by the wife of his worshipper. The Semitic goddess was thus essentially different from the Accadian goddess, where she had developed out of an earlier 'spirit,' as the Accadian goddess was in all respects the equal of the god.

The meeting of two systems of religious belief, so unlike one another, one of which was closely bound up with the older culture and literature of the country, could not have been other than a shock. But in course of time a union took place between them. A compromise was effected, and that official system of religion arose which lasted through the whole remaining history of Babylonia. It was carried to Assyria by the Semitic colonists, who founded there the Assyrian kingdom, though in Assyria its character was more genuinely Semitic than in Babylonia, in consequence of the purer Semitic blood of the Assyrian people.

In official Babylonian religion the older Accadian gods had been recognized, and placed at the head of the hierarchy of heaven, the multitudinous spirits of the ancient cult becoming the three hundred spirits of heaven, and the six hundred spirits of earth, who formed the 'hosts' of the supreme deities and acted as their ministers. Wherever it was possible the older gods assumed a solar character; not only Merodach of Babylon, but even Mul-lil of Nipur, became a Baal. The worship of the 'older Bel,' however, Mul-lil of Nipur, faded more and more out of sight, and after Babylon had become the capital of the country (about B.C. 2280) it was practically superseded by that of the younger Bel, Merodach of Babylon. The Bel or Baal addressed in the later inscriptions always means Merodach.

Under Semitic influence the Accadian goddesses either became the colourless companions of the gods, or else were changed into male divinities. One goddess only resisted the general tendency; this was Istar, or

Ashtoreth, originally the spirit of the evening star. Her worship at Erech was too firmly fixed to be uprooted, and she remained to the last an independent goddess who took equal rank with a god. Her cult was even carried by the Semites to foreign lands along with the Babylonian civilization with which she was associated. But in Arabia and Moab she was transformed into a god; in Canaan she was assimilated to the other goddesses in the Semitic pantheon; she lost her independent position, and added to her name the final *th*, which denotes the feminine gender. It was only in Babylonia and Assyria, in the country of her origin, that her primitive character remained unchanged.

Another result of the Semitic occupation of Chaldea was the compilation of sacred books. The ancient Accadian magical charms and hymns to the gods were translated into Semitic Babylonian, and published in two great works. The hymns became a sacred book, and the Accadian, in which they were written, a sacred language. Any mistake in the recitation of them came to be considered an impiety, which might bring down upon it the anger of the gods. New hymns were composed, chiefly in honour of the Sun-god, but though they were written by Semitic priests, the language of them was Accadian. Accadian, in fact, now assumed the same place in the religious services of the temples that Latin has in the Roman Catholic Church, or Coptic in the Coptic Church. It was only the rubric of the Liturgy which was permitted to be in Semitic Babylonian; the hymns and most of the prayers were in the extinct language of Sumer and Accad.

But the mass of the people, at all events in the country, could not have been much affected by the official system of religion. They brought their sacrifices to the temples, they attended the services that were held in them, they paid their tithes to the priests, but they also retained a large part of their old beliefs and superstitions. The sorcerer still practised his arts among them, like the wise woman in the remote parts of our own island. The countless spirits of the old Accadian creed still existed in the popular belief, though they had become demons, mostly of a malevolent character. In fact, a large part of the life of the Babylonian was occupied in devising charms and amulets, or uttering spells which should keep at a distance from him the evil spirits. They might enter into him through the water he drank, or the food he ate, if due precautions were not taken that the water was pure, and the food clean. It was at night, and during the hours of darkness, that the

evil spirits were specially dangerous; nightmare was a demon that sought to strangle its victim, and vampires were ever on the watch to suck his blood. Among the means employed for warding off these dreaded visitants were magical threads twisted seven times round the limbs, to which phylacteries were bound, consisting of ‘sentences from a holy book.’

At the head of the evil spirits of the night was Lilat, the wife of Lilu, a name which the Semites had borrowed from the old Accadian *lil*, ‘a ghost.’ In Hebrew, Lilat became Lilith, who occupies a prominent place in Talmudic legend, and is once mentioned in the Old Testament^[30] among the creatures of popular Babylonian mythology whom the prophet cites in illustration of the approaching desolation of Chaldea.

But, besides the malevolent spirits which peopled the air and the underworld, there were also good spirits, who acted as the ministers of the gods, who ‘bowed themselves’ in the courts of heaven, and formed the ‘hosts’ of which Bel, the supreme god of Babylon, and Assur, the supreme god of Assyria, were entitled the ‘Lords.’ Among them were the *sedi*, or guardian spirits, who were symbolized by the huge winged bulls at the entrance to an Assyrian palace. Here they were supposed to protect the house from the assaults of evil. We learn from Deuteronomy^[31] that the Israelites also fell away to the worship of these *sedi* or *shedim* (translated ‘devils’ in the Authorized Version) and offered sacrifices to them. Along with the *sedi* were associated the *kirubi*, or ‘cherubs,’ who are sometimes depicted in the Assyrian sculptures as standing or kneeling on either side of the tree of life. They are winged, with the heads of eagles, or more rarely of men.

The heaven of popular Babylonian belief was not ‘the land of the silver sky,’ to which Assyrian poets declared that the souls of the great and good would ascend, nor even that highest of the heavens, far above the firmament, which is referred to in the Chaldean account of the Deluge. It was, like the Greek Olympos, the summit of a mountain, hidden in perpetual cloud, called sometimes ‘the mountain of the East,’ sometimes ‘the mountain of the world,’ and often identified with Mount Rowandiz, east of Assyria. This was the mountain to which the Babylonian king is described in Isaiah^[32] as saying in his heart that he would ascend and exalt his ‘throne above the stars of God.’ It was imagined that the apex of the firmament rested, like that of an extinguisher, upon the peak of the

mountain, the stars which hung as lamps from the firmament being below it.

The world of the dead, it was believed, lay under the ground. Here the spirits of the dead flitted in gloom and darkness, like bats, with dust alone for their food. Here, too, the shades of the ancient heroes sat on their thrones, rising only to welcome the spirit of a Babylonian king who should come to join them. In the midst of this dark land of forgetfulness, which was barred in by seven gates, sat the rulers of Hades, on a golden throne, beneath which bubbled up the waters of life. It was only through the aid of Merodach, 'the pitiful god who raises the dead to life,' that any could drink of the waters and rise once more to the world of light.

It is difficult to say how far these popular beliefs were shared in by the educated. In later times, at all events, purer and more spiritual ideas prevailed among the upper classes, and found their expression in literature. A school even arose at Erech which endeavoured to resolve the manifold deities of the pantheon into one supreme God, and in Assyria, Asshur tended more and more to become 'God of gods' and 'Lord of lords.' How nearly, for instance, do the words of Nebuchadnezzar approach the language of monotheism in two of the prayers which he has bequeathed to us. Here is one:—

'To Merodach, my lord, I prayed: I began to him my petition: the word of my heart sought him, and I said: "O prince, thou art from everlasting, lord of all that exists, for the king whom thou lovest, whom thou callest by name, as it seems good unto thee, thou guidest his name aright, thou watchest over him in the path of righteousness! I, the prince who obeys thee, am the work of thy hands; thou hast created me and hast entrusted to me the sovereignty over multitudes of men, according to thy goodness, O lord, which thou hast made to pass over them all. Let me love thy supreme lordship, let the fear of thy divinity exist in my heart, and give what seemest good unto thee, since thou maintainest my life.'"

Centuries before Nebuchadnezzar, however, language almost equally lofty had been used of the Moon-god in a hymn which had been composed before the age of Abraham in the city of his birth, Ur of the Chaldees. Here are some of the lines of the hymn:—

Father, long-suffering and full of forgiveness, whose hand upholds the
life of all mankind!...

First-born, omnipotent, whose heart is immensity, and there is none who
may fathom it!...

In heaven, who is supreme? Thou alone, thou art supreme!

On earth, who is supreme? Thou alone, thou art supreme!

As for thee, thy will is made known in heaven, and the angels bow their
faces.

As for thee, thy will is made known upon earth, and the spirits below
kiss the ground.

The temples of Assyria and Babylonia resembled that of Jerusalem in general appearance, excepting only that a tower was attached to them, from the top of which astronomical observations could be made. The temple itself stood within a large court, and the public library was established in one of its chambers. The court was surrounded with the rooms in which the priests lived, and in it was a 'sea' or large basin of water for purificatory purposes, supported, like that of Solomon, on the heads of bronze bulls. At the extreme end of the temple was the 'holy of holies,' which took its name from the curtain that concealed it from the eyes of the profane. Here, according to Nebuchadnezzar, was 'the holy seat, the place of the gods who determine destiny, the spot where they assemble together, the shrine of fate, wherein on the festival of first-fruits at the beginning of the year, on the eighth and the eleventh days, the divine king of heaven and earth, the lord of the heavens (Bel Merodach) seats himself, while the gods of heaven and earth listen to him in fear and stand bowing down before him.' Here, too, was the image of the god, and the golden table of offerings in front of it.

The shrine further contained a coffer in which two written tables of stone were placed. Those found by Mr. Hormuzd Rassam, in a chapel near Nineveh, record the victories of the king and the account of the erection of the building. In front of the coffer, or ark, was an altar approached by steps. At times, instead of a temple or chapel, a 'beth-el,' or 'house of god,' was built, which originally consisted of a stone consecrated by a libation of oil, and supposed to have thus been turned into a habitation of the deity.

The temples were served by a large body of priests. At the head of them was the high priest, whose office could be held by the king, and in Assyria

was usually held by him. Besides the supreme high priest, or pontiff, as we might term him, there were also subordinate high priests, reminding us of the 'high priests' of the Jewish Sanhedrim. The lower ranks of the hierarchy consisted of 'the anointers,' whose duty it was to cleanse the vessels of the temple, the priests of the goddess Istar, and the 'elders.' Connected with the temple, but separate from the regular priesthood, were the 'prophets' and their servants, at the head of whom was 'the chief of the prophets.' The prophet predicted the future, and was consulted on most matters of state. He accompanied an army on the march, and as, like the Roman augur, he claimed to know the will of heaven, its action depended upon his decision. The general ventured to engage in battle only when the prophet promised him victory. When the Assyrian king had suppressed a revolt in the Babylonian cities, he tells us that 'by the command of the prophets,' he 'purified their shrines and cleansed their chief places of prayer. Their angry gods and wrathful goddesses he soothed with supplications and penitential psalms. He restored and established in peace their daily sacrifices, which they had discontinued, as they had been in former days.'

The offerings to the gods were divided into sacrifices of animals, such as oxen, sheep, goats, and doves, and offerings of meal, dates, oil, and wine. The animals were slaughtered by a servant who does not seem to have belonged to the priestly caste, and certain portions of them only, such as the caul of the heart, the chine, and the legs, were offered to the gods. One of the Babylonian temples received as a yearly gift from Nabonidos about six bushels of dates.

In addition to the 'daily sacrifice' there were constant services in the temples both by day and at night. On the great festivals of the year there were, moreover, services of a special character. Each temple, furthermore, had its commemoration festival, and from time to time extraordinary days of thanksgiving or humiliation were ordained. Thus when the Assyrian Empire was in danger from an invasion of Scythians from the north, Esarhaddon prescribed a fast with particular prayers and ceremonies that should last for 'a hundred days and a hundred nights.' The 'new moons' also were observed with special solemnity, and, like the Israelites, the Babylonians and Assyrians kept a *sabattu* or 'sabbath,' which a Babylonian writer describes as 'a day of rest for the heart.' It was observed on the seventh, fourteenth, nineteenth, twenty-first, and twenty-eighth day of each month,

and on it all kinds of work were disallowed. No food was to be cooked, no new garments put on, no medicine taken. The king was forbidden to ride in his chariot, and even the prophet was forbidden to prophesy. In the night a 'free-will offering' was made to the gods.

The temple and priests were supported by the contributions of the people, which were partly obligatory and partly voluntary. The most important among them were the 'tithes' paid upon all produce. The tithes were contributed by all classes of the population, from the king to the peasant, and lists exist which record the amounts severally due from the tenants of an estate. The tithes were paid for the most part in corn; thus we find a Babylonian paying about eleven bushels of corn to the temple of the Sun-god as the 'tithes' required from him for the year. The 'tithes' paid to the same temple by Nabonidos just after his accession amounted to as much as six manehs of gold, or £840. Nabonidos, however, had just usurped the throne, and he may therefore have wished to gain the favour of the priests by an unusually large gift.

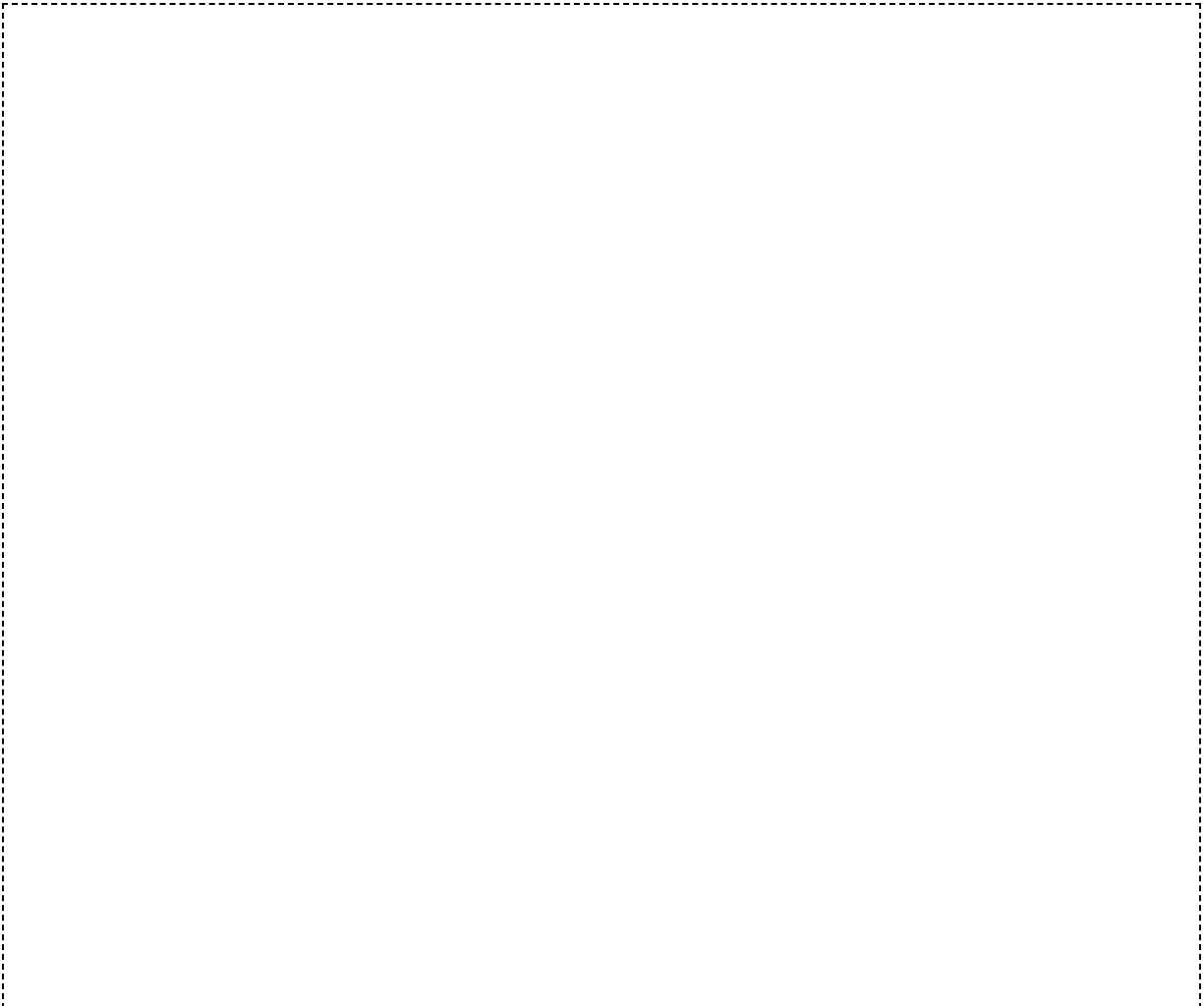
Voluntary gifts were common, and were often made in pursuance of a vow or in gratitude for recovery from sickness. Among such gifts various articles of dress were included, with which the images of the gods were adorned. Both the gods and their ministers were distinguished by their vestments, and special vestments were required to be worn on the various festivals of the year.

It might indeed have been said of the Babylonians that in all things they were 'too superstitious.' Their lives were passed in perpetual fear of the multitudinous demons by which they believed themselves to be surrounded, or in a constant round of religious services. The priest was supreme in the State. The king received his power from Bel, who was in theory the true ruler of the community, and his highest title was that of 'pontiff.'

It was different in Assyria. Here the military element was dominant, and the king, as general of the army, exercised his tyranny over priests and laity alike. Not but that the Assyrians also were deeply imbued with the religious spirit. Asshur, their chief deity, was, like the Assyrian monarch, 'king of kings' and 'lord of lords.' It was he who gave victory to his worshippers, and took vengeance on their foes; in his name they subdued 'the unbelieving,' and compelled them to acknowledge the supremacy of Asshur.

Asshur, in fact, was a national god, who brooked no rivalry or companionship, not even that of a wife. But he was stern and unforgiving, unlike Bel Merodach of Babylon, 'the merciful one who sends help to those that trust in him.'

Both deities reflected the character of the populations who adored them. Their attributes were human, untouched by the light that cometh from above. When we compare the noblest gods of Assyria and Babylonia with the God revealed to a kindred people, inferior in numbers and political power, in wealth and culture, we may see as in a glass the unfathomable gulf which divides them. There was much in Babylonian religion that commands our respect, there was much that shows how there were men on the banks of the Euphrates who were seeking 'the Lord, if haply they might feel after Him and find Him,' but it lacked the one thing needful, the revelation of Himself that was made alone to the chosen people of Israel.



FOOTNOTES

[1] Ezek. xxiii. 14, 15.

[2] Gen. ii. 14.

[3] Gen. x. 12.

[4] Jer. l. 21.

[5] Gen. x. 11.

[6] Isa. xliii. 14.

[7] Amos iii. 15; comp. Ps. xlv. 8.

[8] Joshua vii. 21.

[9] Merodach-nadin-akhi, B.C. 1106. He has on his head a tall square cap, ornamented in front with a band of rosettes immediately above the forehead, while a row of feathers in an upright position runs round the top. It is curious that a similar head-dress was worn by the Zakkur, who are usually identified with the Teukrians, and are among the foreign enemies depicted upon the Egyptian monuments.

[10] Judges i. 12, 13.

[11] Isa. xxxviii. 8.

[12] Prov. xxv. 1.

[13] Jer. xxxii. 10, 14.

[14] 2 Kings xviii. 26.

[15] 1 Kings iv. 33.

[16] As the copyist was the son of 'an irrigator,' one of the poorest of the free labourers of Babylonia, the fact is a striking illustration of the extent to which education was spread in the country.

[17] Compare Job xiii. 27: 'Thou settest a print upon the soles of my feet.'

[18] Dan. i. 3-5, 11.

[19] Gen. x. 11.

[20] A feminine form of a masculine name corresponding to the Hebrew Ahab.

[21] Ezek. xxvii. 18.

[22] Jer. xxxii.

[23] Jer. xxxii. 14.

[24] See Dr. Oppert's translation and remarks upon the case in the new series of *Records of the Past*, i. pp. 154-162.

[25] The fragments have been translated by Mr. Bertin for the new series of *Records of the Past*, iii. pp. 91-101.

[26] Jer. xxxix. 3.

[27] 2 Chron. xvi. 12.

[28] 2 Kings xx. 7.

[29] Ps. cxxxvii. 3.

[30] Isa. xxxiv. 14.

[31] Deut. xxxii. 17.

[32] Isa. xiv. 13.

INDEX

Accadian language, the, [35](#).

Adoption, [52](#).

Agents, House, [72](#).

Anointers, [120](#).

Aristocracy, the, [90](#).

Army, the, [91](#).

Ashtoreth, the goddess, [111](#).

Asshur, the god, [124](#).

Assyria, description of, [10](#);

stone in, [20](#);

slavery in, [82](#);

religion in, [123](#).

Assyrians, the, clothing of, [9](#);

history of, [13](#);

character of, [14](#);

religion of, [16](#), [123](#);

decay of, [17](#);

writing of, [31](#).

Babylonia, description of, [10](#);

use of bricks in, [18](#);

religion in, [106](#);

Semites in, [109](#).

Babylonians, the, clothing of, [9](#);

history of, [12](#);

character of, [14](#);

religion of, [16](#), [106](#);

condition of, [17](#);
houses of, [21](#);
education of, [30](#);
writing of, [30](#);
learning of, [36](#), [41](#);
their system of farming, [85](#);
trades and professions of, [89](#);
their industry, [104](#).

Barachiel, a slave, case of, [78](#).

Barge, State, [96](#).

Bel-katsir, story of, [53](#).

Belshazzar, contract of, [65](#).

Blacksmiths, [97](#).

Books, sacred, [30](#), [112](#).

Boots, [27](#).

Borsippa, the library of, [40](#).

Bowmen, [93](#).

Bricks, the use of, in Babylonia, [18](#).

Building, cost of, [97](#).

Bulls, winged, [114](#).

Bunanit, the case of, [101](#).

Burial, mode of, [54](#).

Cavalry, [91](#).

Chaldeans, the, [11](#).

Chariots, [91](#).

Charms, belief in, [113](#).

Cherubs, [115](#).

Civil Service, the, [90](#).
Clay tablets, [30](#).
Clothes, [9](#), [61](#).
Commissariat, the army, [94](#).
Coppersmiths, [97](#).
Costume, [24](#).
Cotton, use of, [24](#).
Credit, the system of, [68](#).

Demons, belief in, [107](#).
Devils, belief in, [114](#).
Divorces, [46](#).
Doctors, [98](#).
Dowry, [46](#).
Dragoman, the, [38](#).
Dress, [24](#).

Elders, [120](#).
Eridu, a centre of religion, [109](#).
Etymology, [38](#).
Evil spirits, belief in, [113](#).

Farming, the system of, [85](#).
Festivals, [121](#).
Fish, [63](#).
Foundling, story of a, [42](#).

Furniture, [22](#).

Gardens, [14](#), [23](#).

Grain, [62](#).

Hair, mode of wearing the, [28](#).

Head-dress, [27](#).

Heaven, belief in, [116](#).

High priests, the, [120](#).

House of the males, the, [51](#).

Houses, description of, [21](#);
deeds relating to, [69](#).

Hymn to the Moon-god, [118](#).

Infantry, [92](#).

Interest, rate of, [67](#).

Irrigation, use of, [23](#).

Israelites, the, learning of, [44](#).

Istar, the goddess, [111](#).

Jewels, use of, [26](#).

Judges, [100](#).

Kassi, the, [12](#).

King, the, position of, [90](#).

Lawyers, [100](#).

Learning, state of, [36](#).

Lens, discovery of a, [33](#).

Libraries, [40](#).

Lilat, a demon, [114](#).

Lords, [114](#).

Maneh of Carchemish, the, [82](#).

Market-places, [58](#).

Marratu, [11](#).

Marriage customs, [45](#).

Medicine, the practice of, [98](#).

Merodach, the god, [109](#).

Merodach-baladan, [11](#).

Money-lending, [66](#).

Moon-god, a hymn to the, [118](#).

Mul-lil, the god, [109](#).

Musicians, [103](#).

Muslin, use of, [24](#).

Nabonidos, [39](#).

Nail-marks, [41](#).

Naming of a child, the, [52](#).

Nebuchadnezzar, a prayer of, [117](#).

Nergal-ritsua, the case of, [75](#).

New Moons, observance of, [122](#).

Nipur, a centre of religion, [109](#).

Partnerships, [63](#).
Physicians, [98](#).
Poets, [103](#).
Polygamy, [45](#).
Prayer of Nebuchadnezzar, [117](#).
Prices of various articles, [59](#).
Priests, [108](#), [120](#).
Princes, [90](#).
Prophets, [120](#).
Proverbs, use of, [88](#).

Rab-shakeh, the, [36](#).
Rafts, [95](#).
Religion, description of, [106](#).
Resen, [10](#).
Rowandiz, Mount, [116](#).

Sabbaths, observance of, [122](#).
Sacrifices, [121](#).
Sargon I, origin of, [85](#).
Semites, the, in Babylonia, [109](#).
Ships, [95](#).
Shoes, [26](#).
Slaves, position of, [74](#);
 sale of, [79](#);
 classes of, [84](#).
Slingers, [93](#).

Songs, [87](#).

Sorcerers, [107](#).

Stone, free use of, in Assyria, [20](#).

Streets, [63](#).

Syllabary, the, [33](#).

Tammuz, the god, [85](#).

Taxes, [68](#).

Temples, description of, [119](#).

Tithes, [122](#).

Totemism, [108](#).

Trumpets, [104](#).

Vegetables, [24](#).

Vestments, [123](#).

Wines, [61](#).

Women, position of, [42](#).

Year, the, [86](#).

LIST OF SCRIPTURE REFERENCES

GENESIS.

ii. 14	10
x. 11	13 , 58
x. 12	10

DEUTERONOMY.

xxxii. 17	114
-----------	---------------------

JOSHUA.

vii. 21	24
---------	--------------------

JUDGES.

i. 12, 13	31
-----------	--------------------

1 KINGS.

iv. 33	40
--------	--------------------

2 KINGS.

xviii. 26	36
xx. 7	100

2 CHRONICLES.

xvi. 12	99
---------	--------------------

JOB.

xiii. 27	43
----------	--------------------

PSALMS.

xlvi. 8	21
---------	--------------------

cxxxvii. 3 [104](#)

PROVERBS.

xxv. 1 [32](#)

ISAIAH.

xiv. 13 [116](#)

xxxiv. 14 [114](#)

xxxviii. 8 [32](#)

xliii. 14 [15](#)

JEREMIAH.

xxxii. [73](#)

xxxii. 10, 14 [32](#)

xxxii. 14 [73](#)

xxxix. 3 [90](#)

l. 21 [11](#)

EZEKIEL.

xxiii. 14, 15 [9](#)

xxvii. 18 [61](#)

DANIEL.

i. 3-5, 11 [52](#)

AMOS.

iii. 15 [21](#)

*** END OF THE PROJECT GUTENBERG EBOOK SOCIAL LIFE
AMONG THE ASSYRIANS AND BABYLONIANS ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.